

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 01/26/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02399
CASE NAME: ZEBRACH VS. BARNES
HEARING ON PETITION IN RE: APPROVAL OF COMPROMISE OF CLAIM
FILED BY: ZEBRACK, DAVID
TENTATIVE RULING:

Plaintiff David ZeBrack, as Conservator of the Estate and Person of Jane Doe, a Conservatee ("Plaintiff") filed a Petition to Approve Compromise of Claim on September 10, 2025 (the "Petition to Approve Compromise") seeking court approval of the compromise and proposed disposition set forth therein. The Petition to Approve Compromise was set for hearing on January 26, 2026.

Analysis

The Petition to Approve Compromise is unopposed. A Proof of Service reflects service of the petition on September 10, 2025. The Court has considered the Petition to Approve Compromise and finds the

terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The subject compromise is APPROVED and the Petition to Approve Compromise GRANTED.
2. Plaintiff to submit a proposed form of order.

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: PROTECTIVE ORDER AND FOR SANCTIONS**
FILED BY: CMD SALOON, LLC
TENTATIVE RULING:

Defendant and cross-complainant CMD Saloon, LLC (“CMD”) filed a Motion for Protective Order and for Sanctions on September 9, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on January 26, 2026. Notice of the motion was duly given. See Notice of Motion for Protective Order filed December 16, 2025. No opposition papers were filed. See Non-Opposition filed January 14, 2026.

Background

The moving party’s supporting declaration summarizes the discovery requests served on the moving party CMD by defendant and cross-defendant Misty Leone (“Ms. Leone”) in this case. See Declaration of David S. Pearson filed September 9, 2025 (“Pearson Decl.”), ¶¶2-3.

The two most recent sets of discovery which and the requests that are the subject of this motion are (1) a set of Form Interrogatories—General, Set One (the “Form Interrogatories”) and (2) a set of Requests for Admission, Set One (the “RFAs”). See Pearson Decl., **Exhibits A and B**, respectively. The RFAs consist of 35 separate requests for admission. These two discovery requests are referred to hereinafter as the “Discovery Requests.”

CMD’s counsel sought to meet and confer about the Discovery Requests. See Pearson Decl., ¶4 and **Exhibit C** thereto. The meet and confer communication outlined CMD’s concerns. *Id.* CMD asserted that form interrogatories were already previously propounded by Ms. Leone on December 3, 2024 and it was improper to propound the same requests again in the manner done by Ms. Leone. *Id.* CMD also asserted that Ms. Leone had previously propounded requests for admissions with “over 85 RFAs” and the latest set was erroneously labeled as a “Set One,” containing another 35 separate requests for admissions without the required declaration for additional discovery. *Id.*

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting,*

Inc., supra, 148 Cal.App.4th at 402.

A party upon whom requests for admissions has been propounded may seek a protective order under Code of Civil Procedure section 2033.080. See Code Civ. Proc. § 2033.080. Likewise, a party may also seek a protective order regarding interrogatories propounded on the party. See Code Civ. Proc. § 2030.090. A court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. *Id.* at §§ 2033.080(b) and 2030.090(b).

Both of the Discovery Requests propounded by Ms. Leone were defective and/or unwarranted.

It is undisputed that before propounding the subject RFAs, Ms. Leone had previously propounded substantially more than 35 requests for admissions. Pearson Decl., ¶12. A party requesting more than 35 requests for admissions (not relating to the genuineness of documents) must also serve a “DECLARATION FOR ADDITIONAL DISCOVERY.” See Code Civ. Proc. § 2033.050. Ms. Leone failed to do that. See Pearson Decl., ¶14 and **Exhibits B and C** thereto.

Moreover, as CMD’s briefing points out, the Discovery Requests are unwarranted. They are cumulative and, in many instances, are of no or marginal relevance. Many also seek admissions that are unnecessary and burdensome compared to any probative value, such as asking for an admission that a document states matters that are plainly reflected on the face of the subject document.

As to the Form Interrogatories, Ms. Leone had previously served a set of “Form Interrogatories – Limited Civil Cases” in January 2025. Pearson Decl., ¶12. She then served a second set of form interrogatories. Typically, a single set of form interrogatories is served on a party. The form interrogatories designated for use in a limited civil case (see DISC-004) contain much of the same general questions as in the general form typically used in unlimited civil cases (see DISC-001). While there are certainly differences, Ms. Leone failed to make any showing why both sets would have been necessary or how the latter set might have sought information not addressed by the first set. She certainly failed to meet and confer with CMD to articulate any belief that the second set was warranted notwithstanding the first set of form interrogatories.

Accordingly, the Court finds good cause to issue a Protective Order regarding the Discovery Requests as follows:

1. The Form Interrogatories need not be answered. Code Civ. Proc. § 2030.090(b)(1).
2. The RFAs need not be answered. Code Civ. Proc. § 2033.080(b)(1).

Sanctions

Arguably, monetary sanctions against Ms. Leone are mandatory. See Code Civ. Proc. §§ 2030.090(d) and 2033.080(d) (court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.).

However, even if not mandatory, Ms. Leone’s failure to respond to CMD’s meet and confer efforts regarding the Discovery Requests constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Ms. Leone constituted conduct that was a misuse of the

discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely meet and confer regarding the Discovery Requests, the Court finds that Ms. Leone did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is GRANTED.
2. Ms. Leone shall pay monetary sanctions to CMD in the amount of **\$1,935.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by CMD as a result of the foregoing conduct by Ms. Leone. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the supporting declaration of the moving party. The Monetary Sanctions shall be paid by Ms. Leone within thirty (30) calendar days of notice of entry of this order.
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: VACATE FEBRUARY 2, 2026, BENCH TRIAL AND JURY TRIAL WAIVER
FILED BY: LEONE, MISTY**

TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Vacate February 2, 2026 Bench Trial on November 3, 2025 (the “Motion to Vacate Bench Trial”). The Motion to Vacate Bench Trial was set for hearing on March 16, 2026. Notice of the motion was duly given. Subsequently, the Court advanced the hearing date on the motion to January 26, 2026. See Order entered January 20, 2026. The motion is opposed.

Background

At the Case Management Conference on October 23, 2025, a court trial was set by the Court regarding a bifurcated issue (the “Bifurcated Issue”). See Minute Order dated October 23, 2025. At a subsequent Issue Conference, the Court conferred with the parties regarding the Bifurcated Issue and all parties and counsel concurred that the scope of the Bifurcated Issue and the trial thereon is the nature and extent of plaintiff Nicole D. Trippie's ownership interest in the entity defendant CMD Saloon, LLC under the Operating Agreement and otherwise. Order entered January 20, 2026. The court trial on the Bifurcated Issue is set for February 2, 2026 (the “Bench Trial”).

Ms. Leone’s Motion to Vacate Bench Trial seeks to vacate the Bench Trial and convert the Issue Conference set in connection with the Bench Trial to a regular CMC. Ms. Leone contends that the Bench Trial would violate her right to a jury trial of the Bifurcated Issue. The latter request is DENIED as MOOT, as the matter was not heard before the Court convened and conducted the Issue Conference on January 8, 2026.

Ms. Leone filed a Supplemental Brief in support of her motion on January 20, 2026, a long with a supplement declaration (“Supp. Leone Decl.”).^{*} The Supp Leone Decl. describes at length apparent

efforts to obtain a recording of the proceedings on October 23, 2025 and various issues with doing so. See Supp. Leone Decl., ¶7 *et seq.* However, no transcript or audio recording has been lodged to date. Ms. Leone’s moving papers did not proffer any transcript of the proceedings on October 23, 2025.

A Request for Judicial Notice was filed as well by Ms. Leone on January 20, 2026. The Court need not take judicial notice of the referenced pleadings. Those pleadings are part of the Court’s file and the Court has reviewed them.

Opposition papers were filed on January 20, 2026, including an opposition Declaration Alexander J. Gregory (“Gregory Decl.”). The opposition papers include a request for judicial notice of the Minute Order dated October 23, 2025. The Court need not take judicial notice of the referenced paper. That paper is part of the Court’s file and the Court has reviewed it.

*Although the Court gave Ms. Leone a further opportunity to lodge the recording/transcript, she failed to do so by the deadline given or to date. Moreover, as pointed out in the Opposition, the Court indicated that it would not otherwise entertain any further reply briefing by Ms. Leone. See Gregory Decl., ¶12 *et seq.* Nonetheless, in the exercise of its discretion, the Court has considered the Supplemental Brief and the Supp. Leone Decl.

Analysis

Right to Jury Trial

The right to a jury trial in civil cases under California law is guaranteed by the California Constitution and various statutes. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 3.2.

The right to a jury trial for civil actions is generally limited to those causes of action (and their analogues) that were historically triable in a court of law. *Berg v. Pulte Home Corp.* (2021) 67 Cal. App. 5th 277, 289. To determine whether a claim is legal or equitable, a court looks to the “gist” of the action, understood as “the nature of the rights involved and the facts of the particular case.” *Id.*, citing *People v. One 1941 Chevrolet Coupe* (1951) 37 Cal.2d 283, 299.

The right to a jury trial is a cornerstone of the legal system and in the case of a doubt, a court should resolve the issue in favor of the right to a jury trial. *Id.* at § 3.2, citing *Domestic Linen Supply Co., Inc. v. L J T Flowers, Inc.* (2020) 58 Cal. App. 5th 180, 185 (the right to a jury trial “is basic and should be zealously guarded by the courts.”).

The Bifurcated Issue is central to the adjudication of the claims at issue in the operative complaint because the nature and extent of plaintiff’s ownership interest in the entity defendant CMD Saloon, LLC bears directly on her ability to pursue such claims. There is a right to a jury trial on at least some of those claims, such as the claim for Conversion. See *Raedeke v. Gibraltar Sav. & Loan Assn.* (1974) 10 Cal. 3d 665, 672 (a conversion claim for damages is an action at law for which there is a right to a jury trial). Furthermore, it is well established that where legal and equitable issues are joined in the same action, the parties are entitled to a jury trial on the legal issues. *Robinson v. Puls* (1946) 28 Cal.2d 664, 665-666.

And it is apparent that there are factual matters subject to dispute about the nature of the parties’ relationship, the applicability of the Operating Agreement and the management of the subject business that bear on the determination of the Bifurcated Issue.

Accordingly, the Court concludes that Ms. Leone has demonstrated that she had a right to a jury trial on the Bifurcated Issue on which the Bench Trial was set. See *Stofer v. Shapell Industries, Inc.* (2015) 233

Cal. App. 4th 176, 191 (the trial court erred in holding bench trial on the issue of accrual of claims for strict liability and negligence and denying demand for jury trial on the issue, observing that the “factual issues of whether certain causes of action belong to plaintiff or to a prior owner are central to the substantive merits of plaintiff's tort claims.”).

The Court has considered and rejects that the Opposition argument that there is no right to a jury because any interpretation of the subject Operating Agreement vis-à-vis the Bifurcated Issue does not turn on a determination of extrinsic factual matters. See *Garcia v. Truck Ins. Exchange* (1984) 36 Cal. 3d 426, 439 (party was not denied right to jury trial by trial court because “it is solely a judicial function to interpret a written contract unless the interpretation turns upon the credibility of extrinsic evidence, even when conflicting inferences may be drawn from uncontroverted evidence.”).

This is a myopic view of the Bifurcated Issue and the factual matters impacting it. The rights and obligations under the Operating Agreement are only a part of the scope of the Bifurcated Issue, as the Court confirmed with all parties in open court at the Issue Conference. See Order entered January 20, 2026 (“The Court conferred with the parties regarding the Bifurcated Issue and all parties and counsel concurred that the scope of the Bifurcated Issue and the trial thereon is the nature and extent of plaintiff Nicole D. Trippie's ownership interest in the entity defendant CMD Saloon, LLC under the Operating Agreement and otherwise.”).

Waiver of Right to Jury Trial

Having found that Ms. Leone had a right to a jury trial on the Bifurcated Issue, the Court next considers whether she waived that right. The Court concludes that she did.

A civil litigant's right to a jury trial may be waived in the manner proscribed by statute. CJER Civ. Pro.— Trial, § 3.7. Code of Civil Procedure section 631 specifies the ways in which such right to a jury trial be waived. See Code Civ. Proc. § 631(f). Those include “[b]y oral consent, in open court, entered in the minutes.” *Id.* at § 631(f)(3).

That is precisely what happened here. In fact, Ms. Leone concedes that she consented to the setting of the Bench Trial in open court. See Declaration of Defendant Leone filed November 3, 2025 (the “Leone Decl.”), ¶13. No demand for a jury trial was made.

This setting of a court trial without a demand for a jury or objection by Ms. Leone was entered in the minutes of the Court for the proceedings on October 23, 2025 at which the Bench Trial was set:

PLAINTIFF REQUESTS A BIFURCATED COURT TRIAL O THE ISSUE OF THE OPERATING AGREEMENT.
COUNSEL FOR DEAN CAFIERO HAS NO OBJECTION. MS. LEONE IS UNCLEAR AND RAISES THE ISSUE
OF DEPOSITION TESTIMONY.

THE COURT WILL ADDRESS ANY ISSUE WITH DEPOSITION TESTIMONY IN TURN AT THE COURT
TRIAL.

COURT TRIAL SET RE: THE ISSUE OF THE OPERATING AGREEMENT 02/02/26 AT 8:30AM IN DEPT.09.
FURTHER CMC RE: STATUS OF COURT TRIAL 01/07/26 AT 8:30AM IN DEPT.09.

See Minute Order dated October 23, 2025.

Ms. Leone describes having later reconsidered this consent after later more fully considering and weighing “the advantages and disadvantages of a bifurcated bench trial vs. jury trial.” Leone Decl., ¶14. She asserts that she lacked a sufficient understanding of the “procedure or proceedings” such that her consent and any waiver of the right to a jury trial was without sufficient knowledge of the

consequences. *Id.* at ¶15. The Court does not find this credible.

The fact that the only specific reservation expressed by Ms. Leone, as reflected in the minutes, was the impact of possible discovery issues on readiness to proceed with such a court trial cuts against Ms. Leone's position. Ms. Leone had the wherewithal to carefully consider the impact of such a trial setting in light of the discovery posture of the case. She was plainly able to consider the impact of the setting on her litigation rights and its procedural posture. Yet, she failed to demand a jury trial or object to the setting of a court trial.

The Court has considered whether, in its discretion, to permit a jury trial on the Bifurcated Issue. See CJER Civ. Pro.—Trial, § 3.8. The Court has considered the totality of the circumstances and all evidence before the Court as to whether relief from waiver of a jury on the Bifurcated Issue would be just.

Among other things, the Court observes that the adjudication of the Bifurcated Issue involves a narrow issue whose adjudication would have minimal prejudicial impact on Ms. Leone's right to otherwise contest the substance of the claims against her before a jury. The resolution of the issue would put to rest an issue that will streamline the case and reduce the number of issues to be tried, whether before the court or a jury. Moreover, it will eliminate the possibility of a conflict in the determination on a threshold issue that would otherwise ultimately have to be tried both before the court and a jury separately.

The Court does not conclude that relief from waiver would be just and appropriate.

Disposition

The Court finds and rules as follows:

1. The Motion to Vacate Bench Trial is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03252
CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE
HEARING ON SUMMARY MOTION
FILED BY: NIELSON, COURTNEY
TENTATIVE RULING:

Motion **continued** by the Court to March 2, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: MARHX, DENEA
TENTATIVE RULING:

Plaintiff Denea Marhx ("Plaintiff") filed a Motion for 1) Terminating Sanction, or 2) Issue Sanction, and 3) Monetary Sanction on September 10, 2025 (the "Motion for Sanctions"). The Motion for Sanctions was set for hearing on January 26, 2026. The motion was duly served. The motion is opposed.

Background

Plaintiff's Motion for Sanctions seeks the imposition of a terminating sanction against defendant International Church of the Foursquare Gospel ("International Church") because Plaintiff contends that International Church has defied the Court's prior orders. Alternatively, Plaintiff seeks "an issue sanction striking the 36th affirmative defense set forth in Defendant's Answer." Plaintiff also seeks monetary sanctions in the amount of \$7,080.00.

The Motion for Sanctions is supported by the Declaration of David A. Peck. See Declaration of David A. Peck filed September 10, 2025 (the "Supporting Declaration").

An Opposition brief was filed on January 13, 2026 (the "Opposition").

A Reply brief was filed on January 16, 2026 (the "Reply"). The Court has considered the issue raised as to the timeliness of the Opposition paper. In the Court's discretion, it has considered the Opposition.

Analysis

Plaintiff makes reference to prior orders issued by the Court compelling International Church to provide further responses to certain discovery propounded by Plaintiff. See Order dated August 4, 2025 (the "August 4th Order"). Among other things, International Church was ordered to provide certain further responses to the subject discovery (the "Further Discovery Responses"):

Defendant International Church of the Foursquare Gospel shall serve further verified or amended responses to (1.) Plaintiff's Special Interrogatories, Set One; (2.) Plaintiff's Form Interrogatories-General, Set One; and (3.) Plaintiff's Request for Production, Set One no later than August 26, 2025. Defendant shall also serve all responsive documents no later than August 26, 2025.

See August 4th Order, p. 2.

Plaintiff contends that International Church only provided a further informal production of documents but otherwise failed to provide the Further Discovery Responses ordered by the Court. See Supporting Declaration, ¶9-10.

Plaintiff also recounts two other sets of discovery requests to which International Church had failed to respond. *Id.* at ¶11 [referring to a November 14, 2025 hearing on separate motions to compel addition two sets of written discovery (Special Interrogatories, Set Two, and Request for Production of Documents, Set Two) (the "Additional Discovery")]. The Court notes that an order on this discovery was issued November 14, 2025.

The Opposition states that International Church "intends to comply with the Court's discovery orders at all times." See Opposition, p. 7. This statement rings hollow. The deadline was August 26, 2025, four months and 19 days before the date the Opposition was submitted. Yet, International Church failed for that extended period of time to come into compliance, notwithstanding the pendency of the present motion filed in September 2025.

No showing is made as to any due diligence in an effort to provide the Further Discovery Responses. No showing is made as to any specific reasons for the delay. No declaration is offered at all in support of the Opposition.

Indeed, International Church and its counsel demonstrate a degree of contemptuousness of the Court's prior order when they resort to arguments about why discovery should be limited. At present, the

validity of the discovery is not at issue. No reconsideration was sought as to the Court's August 4th Order. It is a question of compliance and International Church and its counsel have clearly failed to do so.

International Church's failure to comply with the Court's August 4th Order and to provide the ordered discovery responses even after the deadline to do so had passed constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered the appropriate remedy, including whether to impose an incremental sanction so as to give International Church an opportunity to comply before resorting to terminating or issue sanctions. The Court concludes that the just and appropriate remedy is the imposition of monetary sanctions with a further order and admonition to International Church regarding compliance with the Court's August 4th Order and for the further order set forth below.

The Court finds that the foregoing conduct by International Church constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the discovery requests and to comply with the Court's order to do so, the Court finds that International Church did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court further finds and orders as follows:

1. The Motion for Sanctions is GRANTED IN PART as follows:
 - a. International Church and its counsel are ordered to comply with the Court's August 4th Order on or before **Monday, February 23, 2026**.
 - b. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. International Church shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
 - c. International Church shall pay monetary sanctions to Plaintiff in the amount of **\$6,430.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by International Church. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration of the moving party. The Monetary Sanctions shall be paid by International Church **within thirty (30) calendar days** of notice of entry of this order.
2. The Motion for Sanctions is otherwise CONTINUED for hearing to **March 30, 2026**, 9:00 am in Department 34.
3. The Court, *sua sponte*, continues the International Church's Motion for Summary Judgment currently set for hearing on March 16, 2026 (the "MSJ") for approximately 120 days, to permit compliance with the Court's August 4th Order and further discovery proceedings to take place. All of the responding party's deadlines are continued in relation to the MSJ. International Church's MSJ is CONTINUED to **July 27, 2026**, 9:00 am in Department 34.
4. The Court, *sua sponte*, strikes the International Church's Motion to Bifurcate Discovery filed

January 12, 2026 and set for hearing on June 29, 2026 (the “Motion to Bifurcate Discovery”).
The hearing date on the Motion to Bifurcate Discovery is VACATED. The International Church will not be heard on such matters while it stands in a posture of non-compliance and contempt of the Court’s prior discovery order. See *MacPherson v. MacPherson* (1939) 13 Cal.2d 271, 277 (“A party to an action cannot, with right or reason, ask the aid and assistance of a court in hearing his demands while he stands in an attitude of contempt to legal orders and processes of the courts of this state.”).

5. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: SET ASIDE & VACATE JUDGMENT OF DISMISSAL ON THE GROUNDS OF UNDUE INFLUENCE & LACK OF CAPACITY**
FILED BY:
TENTATIVE RULING:

See line 7.

7. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: STAY.**
FILED BY:
TENTATIVE RULING:

At the hearing on August 04, 2025, the Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, and ordered additional briefing. The Court thanks the Parties who submitted their additional briefs and will not be taking any more additional briefing from the Parties at this time.

On September 11, 2025, Counsel for Defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025.

The Probate Court in a minute order dated September 25, 2025, continued the Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

In the name of judicial efficiency, the Court is going to continue this hearing to March 16, 2026, at 9:00 AM in this department, to ensure no conflicting rulings are issued.

8. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
HEARING ON SUMMARY MOTION
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

The Court continues the hearing on this motion to February 23, 2026, at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-00549
CASE NAME: JESUS MUNGUIA VS. LAS MONTANAS MARKET, INC.
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: MUNGUIA, JESUS
TENTATIVE RULING:

Fletcher B. Brown (“Counsel”) filed a Motion to be Relieved as Counsel on September 10, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on January 26, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Jesus Munguia (“Client”).

The supporting declaration filed by Counsel indicates that Counsel “CAN NO LONGER EFFECTIVELY PROSECUTE THIS CASE” such that Counsel’s withdrawal is necessary. See Declaration filed September 10, 2025, ¶2. Counsel’s Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-01030
CASE NAME: SPRING DAUGHTRY VS. PAULA TINT
***HEARING ON MOTION IN RE: FOR LEAVE TO INTERVENE**
FILED BY: CENTRAL CONTRA COSTA TRANSIT AUTHORITY
TENTATIVE RULING:

Third party and proposed intervenor Central Contra Costa Transit Authority (“Intervenor”) filed a Motion for Leave to Intervene on September 9, 2025 (the “Motion for Leave to Intervene”). The Motion for Leave to Intervene was set for hearing on January 26, 2026. The motion was duly served.

Background

Intervenor recites that it is the employer of plaintiff Spring Daughtry, and due to his work-related

injuries, which forms the subject matter of this action, Intervenor provided workers' compensation benefits to or on plaintiff's behalf such that it has the right to intervene in this action.

Analysis

The Motion for Leave to Intervene is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Leave to Intervene is GRANTED.
2. Intervenor to prepare and submit a proposed order after hearing.

11. 9:00 AM CASE NUMBER: C25-01056
CASE NAME: AUDREY WILLIAMS VS. ROLLING HILLS MEMORIAL PARK
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY:
TENTATIVE RULING:

Defendant, Rolling Hills Memorial Park, filed this motion to compel arbitration after plaintiff, Audrey Williams, filed her complaint against it. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, such agreement exists, as discussed below. The motion is **granted**. The Court stays the action and sets a case management conference on July 28, 2026 at 8:30 a.m. for an update on the status of arbitration.

Background

Plaintiff alleges that she went to Rolling Hills Memorial Park on April 14, 2023 to pay respects to her mother. (Complaint, ¶32.) Upon arrival, plaintiff had trouble locating her mother's burial site. (*Id.* at ¶33.) When she contacted defendant's employees, it was revealed that a grave marker for another deceased person was mistakenly placed on plaintiff's mother's burial site. (*Ibid.*) The incident is believed to be the "tip of the iceberg" of misconduct. (*Id.* at ¶31.) Defendant has repeatedly made mistakes on headstones, burials, locations of body, etc., for years. (*Ibid.*) It has continued a pattern of poorly maintaining its entire property and providing insufficient security, such that headstones are covered with debris, families cannot find their loved ones, and graves are vandalized and offerings and ornaments stolen. (*Ibid.*) Defendant has concealed damage and/or errors from loved ones and failed to respond to or address known issues in a timely manner. (*Ibid.*)

Plaintiff filed this lawsuit on April 14, 2025, alleging seven causes of action including: (1) Breach of Contract; (2) Negligence; (3) Violations Of Business & Professions Code § 17200, Et Seq.; (4) Violations Of Business & Professions Code § 17500, Et Seq.; (5) Nuisance; (6) Trespass; and (7) Intentional and/or Negligent Infliction Of Emotional Distress.

In response, defendants moved to compel arbitration under the 2009 agreement, arguing that plaintiff signed an agreement containing an enforceable arbitration provision. Rolling Hills argues the Federal Arbitration Act governs enforceability, and that the agreement is enforceable.

In support of the motion, defendants submit a declaration from John C. Barr ("Barr Decl."),

the Director of Operations of Rolling Hills Memorial Park, describing the procedures defendant uses to obtain and store contracts such as those signed by plaintiff. The declaration attaches the 2009 agreement signed by plaintiff, which includes an arbitration provision. The arbitration provision is all capitalized in a bold, single-spaced font. The provision is within a longer paragraph that relates to other matters as well, such as disclaiming warranties. The provision states, in relevant part:

IN THE EVENT OF A DISPUTE IN ANY MATTER RELATING TO OR ARISING OUT OF THIS AGREEMENT, THE PARTIES SHALL MEET, CONFER AND NEGOTIATE IN GOOD FAITH IN AN ATTEMPT TO RESOLVE THE DISPUTE. IN THE EVENT THE PARTIES ARE UNABLE TO RESOLVE THE DISPUTE THEMSELVES, THE DISPUTE SHALL BE RESOLVED THROUGH BINDING ARBITRATION CONDUCTED BY JUDICIAL ARBITRATION AND MEDIATION SERVICES, INC. IN CONTRA COSTA COUNTY, CALIFORNIA.

Plaintiff opposes the motion, not disputing that she executed the 2009 contract attached by Mr. Barr, or that its arbitration provision is governed by the FAA. Plaintiff contends she was asked to sign the 2009 agreement “in rapid fashion” and without explanation. (Supplemental Declaration of Audrey Williams in Support of Opposition, hereafter “Supp. Williams Decl.,” ¶13.) Plaintiff opposes the motion in part because she contends the 2009 agreement to arbitrate is unconscionable and therefore unenforceable.

In any event, plaintiff argues that a later 2017 agreement superseded the 2009 agreement. The 2017 agreement contained an arbitration provision as well, but the provision required plaintiff to initial the provision in order for it to take effect. Plaintiff’s declaration states she did not initial the provision. The document (Declaration of Sanjiv N. Singh in Support of Opposition, Ex. 1 [Declaration of Audrey Williams filed in Frost case], hereinafter “Williams Decl.,” Williams Ex. 2) shows a slash mark on the blank line, but plaintiff indicates that it is not her initials. (Supp. Williams Decl., ¶15.) When she executed the later agreement, she was “assisted by a staff person” who “controlled the document from behind their desk or counter, and asked [plaintiff] to sign in certain areas.” (*Id.*, ¶14.) Plaintiff further notes that “the hatch marks seen on the document now (which are not my initials), were likely made by a staff person who indicated that those sections did not apply to me. I know with 100% certainty I did not make those hatch marks.” (*Id.* at ¶15.)

Defendant’s reply raises argument related to plaintiff’s lack of authority to modify her deceased mother’s contract. In part to allow parties to better address this argument, and in part to allow them to brief whether a stay pending the *Frost* appeal is appropriate, Judge Devine continued the hearing on this matter and gave both sides the opportunity to submit supplemental papers. Both sides have provided supplemental briefing which the Court has considered.

Evidentiary Matters

Both sides request judicial notice. In support of her opposition, plaintiff seeks judicial notice of Judge Weil’s Order After Hearing denying the motion to compel arbitration in *Paula Frost v. Rolling Hills Memorial Park* (Contra Costa County Superior Court Case No. C24-02653, hereinafter “the Frost case”).

On reply, defendant requests judicial notice of (A) the declaration of Audrey Williams filed on May 20, 2025 in the Frost case, (B) Judge Weil’s Order After Hearing denying the motion to compel arbitration in the Frost case, (C) the Notice of Appeal filed in the Frost case with respect to that order, and (D) Judge Weil’s order denying plaintiff’s motion to consolidate this case with the Frost case.

With its supplemental brief defendant also requests judicial notice of (A) Frost’s

memorandum of points and authorities in support of her motion to consolidate the cases, (B) Frost's Complaint, and (C) Williams' Notice of Related Cases filed in this matter on June 26, 2025.

These requests are **granted**. (Evid. Code § 452 (d) [authorizing judicial notice of records of any court of this state].)

Standard

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2025) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate**. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Discussion

1. Agreement to Arbitrate

Here, defendant provides a copy of a contract allegedly signed by plaintiff in 2009. The contract contains an Arbitration Agreement. (Exhibit A to Barr Decl.) Plaintiff does not deny the contract is one that she signed, instead confirming the document is what defendant purports it is. (See Williams Decl., Ex. 1.) Plaintiff contends she was asked to "sign the form in rapid fashion," and points out that no one disclosed the existence of an arbitration clause or explained the meaning.

Assent is determined based on an objective standard and, since plaintiff provides no evidence of having sought clarification or asking any questions, "[a] party cannot use his own lack of diligence to avoid an arbitration agreement." (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674,

citations omitted.) Parties dealing at arm's length have no duty to explain to each other the terms of a written contract. (*Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 686, citations omitted.) One who accepts or signs a contract is deemed to assent to all its terms. (*Ibid.*) Plaintiff's evidence concerning a surprise arbitration clause in the 2009 contract goes to her argument on procedural unconscionability, addressed below, but it does not defeat formation.

The Court finds the 2009 agreement contains a mutual agreement to arbitrate.

Plaintiff presents forms she signed in 2017, including one entitled "Specific Terms, Conditions, & Agreements." The first provision of this form states: "BY INITIALING BELOW, PURCHASER AGREES THAT ALL DISPUTES ARISING OUT OF OR RELATING TO THE AGREEMENT SHALL BE SUBMITTED TO AND DECIDED BY MANDATORY AND BINDING ARBITRATION UNDER THE FEDERAL ARBITRATION ACT." (Williams Decl., Ex. 2.) Plaintiff did not initial this arbitration provision. (*Ibid.*) She argues that the lack of initials beneath the 2017 arbitration provision means she effectively revoked the earlier 2009 agreement to arbitrate.

The terms of a final, integrated contract "may not be contradicted by evidence of any prior agreement or of a contemporaneous oral agreement." (Code Civ. Proc., § 1856, subd. (a).) But a written instrument "may be explained or supplemented by evidence of consistent additional terms unless the writing is intended also as a complete and exclusive statement of the terms of the agreement." (Code Civ. Proc., § 1856, subd. (b).) (See *Grey v. American Management Services* (2012) 204 Cal.App.4th 803, 806-807 ["crucial issue in determining whether there has been an integration is whether the parties intended their writing to serve as the exclusive embodiment of their agreement"].)

There is no integration clause in the later agreement (at least in the documents provided to the Court). The uninitialed arbitration provision creates an ambiguity as to the intent of the parties and whether there is a valid arbitration agreement. While the language of the contract would ordinarily be interpreted against the party that caused the uncertainty (Civ. Code, § 1654), it is unclear which party is responsible here for that uncertainty.

The ambiguity permits the Court to consider extrinsic evidence to explain the ambiguity. (*Appleton v. Waessil* (1994) 27 Cal.App.4th 551, 554; *Sweeney v. Earle C. Anthony, Inc.* (1954) 128 Cal.App.2d 232, 235.) Based on the sole payment of a state tax, and reference to the earlier contract, the parties do not appear to have intended the second contract to be a final and complete expression of their agreement. (Code Civ. Proc., § 1856, subd. (d).)

Here, the extrinsic evidence from plaintiff herself and recounting of the transaction shows that she did not intentionally refuse to sign the arbitration provision. She simply was not given the option of reading or controlling the contract, which was "controlled" by the defendant's employee who told her where to sign. This undermines any argument that the parties agreed to modify the original 2009 arbitration agreement.

This fact sets this case apart from *Frost*, wherein the plaintiff "deliberately chose not to initial" the later agreement's arbitration provision. (See RJN, Ex. 1 [June 6, 2025 Order After Hearing in *Frost*] page 3.) Another distinguishing aspect of the present motion is the lack of a new transaction at the time of burial. Plaintiff did not purchase a headstone like the plaintiff in *Frost*, whose purchase of a grave marker appears to underpin multiple allegations in her complaint concerning markers specifically. The headstone purchase created a new contractual relationship with Frost that is not present in this case.

Defendant argues the 2009 contract can only be modified with the consent of all parties. The Court is unconvinced on this point since the claims being asserted here belong to Williams, not her mother.

In any event, the Court finds that there was no meeting of the minds sufficient to constitute an agreement to modify the original contract which included a binding and enforceable arbitration provision. (*Moore v. Wells Fargo Bank, N.A.* (2019) 39 Cal.App.5th 280, 287 [a modification of a contract is a change in the obligations of a party by a subsequent mutual agreement of the parties]).

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as plead in the operative complaint by plaintiff. The Court further finds that plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

2. Unconscionability

Plaintiff asserts that the arbitration agreement defendant seeks to enforce is unconscionable. Plaintiff bears the burden to prove this defense. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113-114.) Procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability, but they need not be present in the same degree. (*Armendariz, supra*, 24 Cal.4th at 114.) Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. (*Ibid.*) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. (*Ibid.*)

a) Procedural Unconscionability

Plaintiff argues that the arbitration provision in the 2009 agreement was an adhesion contract that was not explained or highlighted by any representative for defendant. She further points to the font size and illegibility. Defendant responds that the provision appears in a “simple, two-page agreement” and was in bold capital letters. Defendant nevertheless concedes “minimal procedural unconscionability,” arguing the showing nonetheless fails based on the lack of any substantive unconscionability.

b) Substantive Unconscionability

Plaintiff argues the fee shifting provisions are substantively unconscionable based on Code of Civil Procedure, § 1284.3 which prohibits arbitrators in California from administering consumer arbitrations containing clauses that require consumers to pay fees and costs incurred by the opposing party. Defendant responds that the statute is preempted by the FAA, which invalidates state-law contract defenses specific to arbitration. Curiously, defendant cites no authority on this specific point despite the statute having been in effect for over 20 years. The Court nonetheless finds persuasive *Tompkins v. 23andMe, Inc.* (9th Cir. 2016) 840 F.3d 1016, cited by defendant, which found a similar fee shifting provision was not unconscionable in the consumer context in light of Code of Civil Procedure, § 1284.3 and subsequent interpretation by the California Supreme Court. That court

stated, in relevant part:

We conclude that the arbitration fee-shifting provision in the Terms of Service is not unconscionable. As in *Sanchez*, the plaintiffs here do not claim, and no evidence in the record suggests, that the arbitration fees are unaffordable for them or would thwart their ability to arbitrate this dispute. Under the case-specific standard announced in *Sanchez*, the fee-shifting clause in the Terms of Service is not unconscionable. *Sanchez*, 61 Cal. 4th at 911. We therefore conclude that the plaintiffs here did not carry their burden of demonstrating the substantive unconscionability of the bilateral prevailing party clause.

(*Tompkins v. 23andMe, Inc.* (9th Cir. 2016) 840 F.3d 1016, 1027, discussing *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 918 [adopting an ability-to-pay test under Code of Civil Procedure § 1284.3, which is applicable on its face to indigent consumers but extended by courts to all consumers].)

Plaintiff also argues that the provision allowing discovery based on the arbitrator's discretion is substantively unconscionable. Plaintiff cites no authority, but defendant cites *Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, which appears to directly contradict the argument. (*Id.* at 689-690 [fact that an arbitration clause may limit discovery rights is not substantively unconscionable because such a finding would cause every arbitration clause to fail].)

Finally, the Court rejects plaintiff's argument that the arbitration agreement should not be enforced on public policy grounds.

Having considered the totality of the evidence before the Court, the Court does not conclude that the subject arbitration provision to be unconscionable or otherwise enforceable.

12. 9:00 AM CASE NUMBER: C25-01068
CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER FILED BY CHRISTOPHER LONDAHL.
FILED BY:
TENTATIVE RULING:

Plaintiff Christopher Londahl, as Special Administrator of the Estate of David W. White's Application for Right to Attach Order and for Writ of Attachment is denied.

Background

Plaintiff Christopher Londahl brings this action in his capacity as Special Administrator of the Estate of David W. White. Defendant Mary Ann LaFleur-White is the surviving spouse of David White. David White and Defendant married on August 4, 2018, after executing a premarital agreement addressing their respective property rights. Prior to the marriage, David White had established estate planning instruments, including the David and Carol White Revocable Trust, which later divided into a Family Trust and a Survivor's Trust following the death of his first wife. According to the complaint, a Third Restatement of the Survivor's Trust provided specified distributions to Defendant and allocated the remainder of the estate to David White's children and grandchildren.

The complaint alleges that David White's health declined significantly in 2022 and 2023 while he was suffering from pancreatic cancer, and that during this period he was elderly and infirm. David White died in September 2023. At the time of his death, he maintained a retirement account with Ameritas, described in the pleadings as a 401(k) plan with a value of approximately \$4.9 million, as well as an Ameritas annuity.

The complaint alleges that in December 2022, an Ameritas beneficiary change form was downloaded and completed that would have altered beneficiary designations in favor of Defendant, but that the form was not filed with Ameritas. The complaint further alleges that on June 5, 2023, a beneficiary change was filed with Ameritas that removed David White's previously designated beneficiaries and designated Defendant as the sole beneficiary of the Ameritas 401(k) account. Plaintiff alleges that this June 2023 beneficiary change was made without David White's knowledge or consent and while he was gravely ill.

According to the complaint and the declaration of Camille Thompson attached to the complaint, Thompson served as David White's executive assistant for 17 years and was entrusted with managing his Ameritas account access credentials. Thompson states that she historically carried out beneficiary changes at David White's direction and that David White instructed her in 2023 to maintain his son and grandchildren as the beneficiaries of the 401(k) account. Thompson states that she did not make the June 2023 beneficiary change and that David White did not instruct her to do so.

The complaint also alleges that in July 2023, shortly before David White's death, an amendment to the Survivor's Trust was made that increased Defendant's beneficial interest beyond what had been provided under the Third Restatement and the premarital agreement. Plaintiff alleges that this amendment took place while David White was physically weak and that Defendant exerted undue influence in connection with the amendment.

The complaint alleges that following David White's death, Defendant engaged in various actions involving estate and trust assets, including use of credit cards, payment of personal expenses with trust funds, refusal to pay a portion of joint tax liabilities, and receipt of a real estate commission from the Trust.

After David White's death, an appeal was submitted to Ameritas disputing the beneficiary designation on the 401(k) account. According to the opposition papers, Ameritas determined that Defendant was the proper beneficiary of the account and approved distribution of the 401(k) proceeds to her.

Plaintiff's April 16, 2025 complaint asserts causes of action for financial elder abuse, fraud, deceit, breach of fiduciary duty, conversion, declaratory relief, and constructive trust. Plaintiff seeks, among other relief, recovery of the Ameritas 401(k) proceeds, return of alleged wrongfully obtained trust assets, declaratory relief invalidating the June 5, 2023 beneficiary designation, and equitable remedies.

Plaintiff now moves for a Right to Attach Order and for Issuance of Writ of Attachment. Plaintiff had previously sought *ex parte* relief, which the Court denied. In the instant Application, Plaintiff seeks a prejudgment attachment against Defendant Mary Ann LaFleur-White, a natural person, in the amount of \$5,042,383.00. The application requests issuance of a writ of attachment directed to Defendant's

property, including all personal bank and financial accounts of Mary Ann LaFleur-White, her interests as trustee of the Mary Ann White 2024 Living Trust dated March 13, 2024, and real property in Rancho Mirage, California.

Legal Standard

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Proc. § 484.010.)

Attachment “is a remedy by which a plaintiff with a contractual claim to money (not a claim to a specific item of property) may have various items of a defendant's property seized before judgment and held by a levying officer for execution after judgment.” (*Waffer Int'l Corp. v. Khorsandi* (1999) 69 Cal. App. 4th 1261, 1271.) Attachment is therefore nothing more than “a provisional remedy to aid in the collection of a money demand.” (*Kemp Bros. Constr. Inc. v. Titan Elec. Corp.* (2007) 146 Cal. App. 4th 1474, 1476.) It is a “harsh remedy,” requests for which will be “strictly construed.” (*Blastrac, N.A. v. Concrete Solutions & Supply* (C.D. Cal. 2010) 678 F. Supp. 2d 1001, 1004-05.)

Before a writ of attachment may issue, plaintiff must demonstrate the following:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.
- (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.
- (4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc. § 481.190.)

Analysis

Availability of Attachment for Elder Abuse Claims

Plaintiff’s memorandum asserts that “[a]ttachment secures claims for fixed or readily ascertainable money demands ...whether arising from contract, fraud, conversion, or mistake,” citing *Klein v. Benaron* (1967) 247 Cal.App.2d 607. Plaintiff did not cite a specific page of the decision for this proposition. Upon review of *Klein*, the Court does not find support for Plaintiff’s assertion. The case does not state that claims for “fraud, conversion, or mistake” support prejudgment attachment. Nevertheless, Plaintiff may seek a writ of attachment based on her cause of action for elder abuse

under Welfare and Institutions Code section 15657.01, which provides:

Notwithstanding Section 483.010 of the Code of Civil Procedure, an attachment may be issued in any action for damages pursuant to Section 15657.5 for financial abuse of an elder or dependent adult, as defined in Section 15610.30. The other provisions of the Code of Civil Procedure not inconsistent with this article shall govern the issuance of an attachment pursuant to this section. In an application for a writ of attachment, the claimant shall refer to this section. An attachment may be issued pursuant to this section whether or not other forms of relief are demanded.

(Welf. & Inst. Code § 15657.01.)

In light of the opening clause (“Notwithstanding Section 483.010”) and reference to other provisions of the Code of Civil Procedure “not inconsistent” with the statute, the court also interprets section 15657.01 to relieve Plaintiff of the burden to prove that her elder abuse claim is founded on a contract. Accordingly, Plaintiff may seek attachment on an elder abuse claim.

Disputed Elements

The parties do not dispute the procedural availability of attachment, but dispute whether Plaintiff has shown the probable validity of the claim and whether the attachment is sought for a proper purpose. For the reasons that follow, the Court finds that Plaintiff has not met the burden of establishing probable validity and therefore does not reach the issue of improper purpose.

Probable Validity of the Elder Abuse Claim

A claim for financial elder abuse contains the following elements: that the defendant took, secreted, obtained, or retained Plaintiff's property or assisted in the taking, secreting, obtaining, or retaining of the property; that Plaintiff was 65 or older, - that defendant took, secreted, obtained, or retained the property (or assisted in those acts) with the intent to defraud, or for a wrongful use, or by undue influence; that Plaintiff was harmed; and that defendant's conduct was a substantial factor in causing that harm. (See Welf. & Inst. Code § 15610.30; CACI 3100.)

Evidence Offered by Plaintiff

Declaration of Christopher Londahl

Christopher Londahl declares that he is the duly appointed Special Administrator of the Estate of David W. White and the plaintiff in this action against Defendant Mary Ann LaFleur White. He states that, in his fiduciary capacity, he has a duty to collect, manage, and protect estate assets and to pursue recovery of assets he contends were wrongfully taken or transferred. He states that the purpose of the prejudgment attachment is to prevent concealment or dissipation of assets pending judgment.

Londahl states that the complaint asserts causes of action for financial elder abuse, fraud, deceit, and conversion. He alleges that Defendant manipulated David White through fraud, coercion, and deceit

to obtain the majority of his estate, contrary to his prior estate planning intentions. Londahl states that David White was 85 years old, gravely ill, largely bedridden, and suffering from diminished mental and physical capacity during the relevant period, rendering him a vulnerable elder.

Londahl alleges that Defendant changed the beneficiary designations on David White's Ameritas 401(k) plan to name herself as sole beneficiary of approximately \$4.9 million in proceeds and similarly changed an Ameritas annuity contract. He states that these benefits were ultimately paid to Defendant despite objections and appeals by the estate and other designated beneficiaries.

Londahl relies on statements he attributes to Camille Thompson, David White's executive assistant, whose declaration is attached to the complaint. Thompson states that she controlled access to David White's Ameritas account and that David instructed her to maintain his son and grandchildren as beneficiaries. Londahl further asserts, based on his own characterization, that an unfiled December 2022 beneficiary change form naming Defendant contained a distinctive spelling of Defendant's name and an irregular signature. Londahl also asserts that Thompson stated David White did not receive an email confirmation regarding a June 2023 beneficiary change.

Londahl states that Defendant wrongfully converted additional estate assets, including charging personal expenses to the estate, failing to pay her share of joint tax liabilities totaling approximately \$128,133, and obtaining a \$14,250 real estate commission from the trust.

Based on these allegations, Londahl asserts that immediate attachment is necessary to prevent further dissipation of estate assets and to avoid irreparable harm.

Declaration of Camille Thompson

Camille Thompson states that she was David White's executive assistant for several years and remained in that role through his death on September 25, 2023. She states that, as part of her job duties, David White entrusted her exclusively with his Ameritas 401(k) security access codes. She states that David White provided her with those access codes several years earlier, later became unaware of them, and told her he would rely solely on her for any online access to his Ameritas 401(k) account. She further states that no one else at David White and Associates had knowledge of the access codes and that, due to his cancer in 2023, David White was unable to access the account without her assistance.

Thompson states that the last beneficiary change she and David White successfully completed occurred in January 2023, after Ameritas requested a completed and notarized spousal consent form. She states that, following submission of that form, the beneficiary designation was changed to name David White's son and four grandchildren, and that Ameritas confirmed the change by email. Thompson states that this January 2023 confirmation was the only beneficiary confirmation email received from Ameritas.

Thompson states that the decedent asked her to attempt additional beneficiary changes in April and June 2023, but her declaration does not describe the nature of those proposed changes. She states that the attempted changes were rejected by the Ameritas system, after which the decedent instructed her to maintain his son and grandchildren as beneficiaries and not to appeal or follow up

with Ameritas. Thompson further states that she reviewed David White's June 2023 Ameritas quarterly statement and confirmed that it continued to list the son and grandchildren as beneficiaries, consistent with that instruction.

Thompson states that on July 27, 2023, at the request of Christopher White, she logged into David White's Ameritas account using the security access codes entrusted to her and printed account documentation, which again confirmed that the beneficiaries were listed as David White's son and grandchildren. She states that following David White's death, the September quarterly Ameritas statement listed Mary Ann White as well as the son and grandchildren as beneficiaries and reflected a 200% payout, which she characterizes as incorrect.

Thompson states that at no point after the June 2023 rejected beneficiary change did David White request any further action regarding beneficiaries, and that he specifically instructed her not to appeal or follow up with Ameritas and to leave the beneficiaries unchanged. She states that she continued to confirm the beneficiary status through quarterly statements and the Ameritas system and that David White never requested that she attempt another beneficiary change. She further states that she reviewed David White's emails daily and that, aside from the January 2023 confirmation email, David White did not receive any emails from Ameritas confirming a beneficiary change.

Evidence Offered by Defendant

Declaration of Mary Ann White

Defendant Mary Ann LaFleur-White states that she is 85 years old and that she began dating David White in or around September 2016, when both were in their late seventies. She states that they married on August 4, 2018, after entering into a prenuptial agreement on or about July 30, 2018. Under the prenuptial agreement, Defendant states she was to receive \$250,000 upon David White's death if they remained married at the time of his passing.

Defendant states that during their marriage, David White told her that he wished to amend his trust to provide for her in the event that he predeceased her. She states that, consistent with those discussions, David amended and restated his Survivor's Trust on or about August 8, 2023, to provide for her following his death. Defendant states that under the Restated Survivor's Trust, the trustee is required to distribute \$250,000 to her upon David White's death and an additional \$750,000 from the net proceeds of the sale of the property located at 61 White Pine Lane in Danville. She states that these trust provisions were consistent with the prenuptial agreement. Defendant further states that David White died she did not expect to receive any additional distributions beyond those specified in the prenuptial agreement and trust.

With respect to the Ameritas 401(k) account, Defendant states that in December 2022 David White asked her to execute a spousal consent form in connection with his intent to designate his son and grandchildren as beneficiaries of the account, and that she signed the form at his request. Defendant states that she never had access to David White's Ameritas account and never possessed usernames or passwords for his financial accounts, other than access to his First Republic Bank checking account for the limited purpose of withdrawing cash to pay caregivers at David White's direction during his illness.

Defendant states that she did not learn until after David White's death that he had later updated his 401(k) beneficiary designation to name her as the sole beneficiary. She states that she was surprised by this decision and believed it reflected David White's love for her and his desire to provide for her after his death. After learning of the designation, Defendant states that she submitted an Election of Benefits Withdrawal Form to Ameritas.

Defendant states that Ameritas delayed distribution of the 401(k) benefits due to competing benefit election forms submitted by her and by Christopher White. She states that after investigating the competing claims, Ameritas determined on or about March 18, 2024 that David White's beneficiary designation naming her as sole beneficiary was valid and approved her claim, while denying Christopher White's claim. Defendant further states that Christopher White appealed Ameritas's determination and that Ameritas denied the appeal by letter dated June 24, 2024, after further review.

Defendant points out that the June 24, 2024 letter from Ameritas denying Chris White's appeal of the 401(k) beneficiary designation attached to the complaint indicates that Ameritas concluded after an investigation that the beneficiary change naming Defendant as sole beneficiary was made using the same login information previously used by David White or his assistant, Camille Thompson and that neither David White nor Thompson took any action after a confirmation email was sent. Defendant further states that Ameritas's letters advised that any lawsuit challenging the benefit determination had to be filed within 180 days and that no such lawsuit was filed. She states that Ameritas's decision is therefore final.

Defendant states that following Ameritas's determination, Plaintiff, acting as trustee of the Restated Survivor's Trust, refused to distribute the \$250,000 and \$750,000 trust payments required under the trust and prenuptial agreement, despite the sale of the Danville property. She states that she filed a probate petition on July 5, 2024 seeking relief for breach of trust and related remedies. Defendant characterizes the present lawsuit and attachment application as retaliatory, and states that granting the application would deprive her of her primary source of income and financial support in her remaining years.

Declaration of Eric G. Fernandez

Eric G. Fernandez declares that he counsel of record for Defendant Mary Ann White. Fernandez states that the application is brought in bad faith and is intended to deprive Defendant, an elderly individual, of funds her late husband intended her to receive.

Fernandez states that the dispute between Plaintiff and Defendant arose after David White's death on September 25, 2023. He states that, under David White's Amended Restated Trust, Plaintiff, acting as trustee, was required to distribute \$1,000,000 to Defendant. Fernandez asserts that Plaintiff refused to make that distribution and breached his duties as trustee. Fernandez states that, as a result, Defendant filed a probate petition on July 5, 2024 seeking remedies for breach of trust, removal of trustees, and related relief.

Fernandez further states that Plaintiff filed the present civil action as retaliation for Defendant's

efforts to enforce her rights under the trust and to challenge Plaintiff's refusal to distribute trust assets. He states that a separate dispute arose after David White's death concerning the beneficiary designation of David White's Ameritas 401(k) account, when Chris White attempted to challenge the designation naming Defendant as sole beneficiary.

Fernandez states that Ameritas investigated the competing claims and determined on or about March 18, 2024 that Defendant was the proper beneficiary of the 401(k) account, and that Ameritas denied Chris White's appeal by letter dated June 24, 2024. Fernandez states that Ameritas advised that any challenge to its determination had to be brought in state or federal court within 180 days, and no such action was filed within that period.

Fernandez asserts that Defendant has been receiving monthly distributions from the 401(k) account and has relied on those payments for her support, and that Plaintiff's application seeks to interrupt those payments without sufficient factual basis.

Fernandez relies on the June 24, 2024 Ameritas letter, which he states reflects Ameritas's conclusion that the beneficiary change naming Defendant was authorized by David White, entered using the same login information previously used to access the account, and confirmed by email, after which no action was taken by David White or his assistant Ms. Thompson. Fernandez states that Plaintiff's continued withholding of the \$1,000,000 allegedly owed to Defendant under the trust effectively operates as its own form of attachment and that granting the application would compound the alleged deprivation of funds owed to Defendant.

Evaluation of the Evidence

To obtain a writ of attachment, Plaintiff must establish the probable validity of the claim upon which the attachment is based, meaning that it is more likely than not that Plaintiff will obtain a judgment on that claim. (Code Civ. Proc. §§ 481.190, 484.090.)

Plaintiff seeks attachment based on a claim for financial elder abuse. Plaintiff's evidentiary showing rests primarily on the declaration of Camille Thompson and on inferences drawn from David White's age, illness, and the ultimate disposition of his Ameritas 401(k) benefits.

Thompson's declaration establishes that she controlled access to David White's Ameritas account and that the last beneficiary change she and David White successfully completed occurred in January 2023, naming his son and grandchildren. Thompson states that David later asked her to attempt additional beneficiary changes in April and June 2023. She states that those attempts were rejected by the Ameritas system, after which David instructed her to maintain the existing beneficiaries and not follow up with Ameritas. Thompson further states that she reviewed the June 2023 quarterly statement and accessed the account again on July 27, 2023, both of which reflected David White's son and grandchildren as beneficiaries.

Defendant states that she did not have access to David White's Ameritas account or credentials and was not aware until after his death that she had been designated as the sole beneficiary. Defendant relies on Ameritas's March 18, 2024 and June 24, 2024 determination letters, which state that Ameritas investigated the competing claims and concluded that a beneficiary change entered on June

5, 2023 naming Defendant as sole beneficiary was valid. Ameritas further concluded that the change was entered using the same login credentials previously used to access the account, that the system reflected the change as “pending” rather than rejected, and that a confirmation email was sent, after which neither David White nor Ms. Thompson took any action.

Taken together, the evidence reflects ambiguity regarding the June 2023 beneficiary change. Plaintiff characterizes the change as rejected based on Thompson’s contemporaneous understanding of the Ameritas system’s response, while Ameritas later characterized the same transaction as legally effective notwithstanding its “pending” status in the online system.

Plaintiff’s theory of elder abuse rests on the assertion that Defendant herself caused the beneficiary designation to be changed. Plaintiff alleges, on information and belief, that Defendant accessed David White’s Ameritas account or completed a beneficiary change form on his home computer. No declarant with personal knowledge attests to having observed Defendant perform any such acts, and Plaintiff identifies no evidence that Defendant possessed login credentials or accessed the Ameritas system. To the extent Plaintiff characterizes Thompson’s declaration as stating that Defendant possessed login credentials, that characterization is not supported by the declaration itself.

While undue influence may be proven through circumstantial evidence and reasonable inferences, those inferences must be grounded in evidence of the alleged influencer’s conduct. Here, the record does not contain facts from which a reasonable inference can be drawn that Defendant engaged in conduct amounting to elder abuse or fraud.

Plaintiff also relies on allegations concerning Defendant’s conduct after David White’s death, including alleged nonpayment of taxes, receipt of a real estate commission, and personal expenditures. The Court does not find this post-death conduct probative of whether Defendant engaged in wrongful conduct in connection with the June 2023 beneficiary designation.

Disposition

Plaintiff has not demonstrated that it is more likely than not to prevail on the merits and has therefore failed to establish the probable validity required for issuance of a prejudgment writ of attachment. As such, the Application is denied.

13. 9:00 AM CASE NUMBER: C25-01138
CASE NAME: MERCURY INSURANCE COMPANY VS. SELAMAT KETAPI
***HEARING ON MOTION IN RE: TO QUASH SERVICE AND SET ASIDE DEFAULT**
FILED BY: KETAPI, MAHLA
TENTATIVE RULING:

Parties to Appear.

14. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON
FILED BY: PRODIGY MANAGEMENT, LLC
TENTATIVE RULING:

Parties to Appear

15. 9:00 AM CASE NUMBER: C25-01792
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Before the Court is Defendant Khaled Ahmad Abukeshek's Demurrer to Plaintiffs' Complaint.

Defendant's unopposed Request for Judicial Notice is **GRANTED**. (Cal. Evid. Code § 452 (d).)

Defendant's demurrer is **SUSTAINED** as discussed below.

Factual Allegations and Procedural Background

This matter arises from an incident that occurred on December 2, 2022, wherein moving Defendant Khaled Ahmad Abukeshek ("Defendant") allegedly shot Khalid Haddad. Khalid Haddad suffered injuries to his head, hand, arm and leg from the gun shots. It is alleged that Khalid Haddad (Decedent) died on July 12, 2023, because of the gun shots.

Plaintiffs filed the Form Complaint in this matter on June 20, 2025. It includes three causes of action: (1) general negligence, (2) premises liability, and (3) intentional tort. Plaintiffs in this action include: (1) the Estate of Khalid Haddad; (2) Muna Rantisi, individually and as successor in interest of Khalid Haddad; (3) Victor George Haddad; (4) Razan Victor Haddad; and (5) Faisal Victor Haddad. All the individual Plaintiffs are immediate family members of the deceased: Muna Rantisi: mother; Victor George Haddad: father; Razan Victor Haddad: sister; and Faisal Victor Haddad: brother.

On November 12, 2024, Plaintiffs Estate of Khalid Haddad and Muna Rantisi, individually and as successor in interest of Khalid Haddad, filed a separate lawsuit against Moving Defendant Khaled Ahmad Abukeshek, Shaker Abukishk, and Violet Jew – all of which are Defendants in this action. That matter is also pending in Contra Costa Superior Court – case number C24-03021 (the "03021 Matter"), currently pending before Department 16. The 03021 Matter also pertains to the December 2, 2022, incident and asserts that same three causes of action. The factual allegations are essentially the same as those in the present action.

Defendant Khaled Ahmad Abukeshek demurs to the entire complaint on two grounds: (1) there is another action pending between the same parties on the same cause of action (Cal. Code Civ. Proc. § 430.10 (c)); and (2) the complaint fails to state facts sufficient to state a cause of action (Cal. Code Civ.

Proc. § 430.10 (e).)

Analysis

In their Opposition, Plaintiffs argue that Defendant's demurrer is improper because there is a "pending motion to consolidate and despite Plaintiffs' effort to comply with California's single-action rule for wrongful death." (Opp. at 1:25-2:2.) The single-action rule has been explained as follows:

"Under California law, either the heirs or the personal representative on behalf of the heirs may bring a single joint indivisible action for wrongful death. This means that ***all heirs should join in a single action and there cannot be a series of suits by heirs*** against the tortfeasor for their individual damages. Any recovery for wrongful death is in the form of a lump sum, i.e., a single verdict is rendered for all recoverable damages. The respective rights of the heirs in any award are determined by the court based on the proportion that the heir's personal damage bears to the damage suffered by the others." (*McDaniel v. Asuncion* (2013) 214 Cal.App.4th 1201, 1203 emphasis added.)

Plaintiffs do not explain how they attempted to abide by this rule by filing a second near-identical lawsuit instead of seeking leave to amend in the 03021 Matter. This second suit constitutes a "series of suits by heirs against tortfeasor for their individual damages."

Plaintiffs argue that they already filed a motion for consolidation which will "eliminate any duplication of actions, parties, or claims," and as such the instant demurrer is "premature and unnecessary," without citing any law to support such a position. The Court notes that Defendant filed this demurrer on September 9, 2025. Plaintiffs' motion to consolidate filed in the 03021 Matter was not filed until December 15, 2025. This was over three months after the demurrer was filed and almost six months after this case was filed. There is no explanation for this delay.

The Court also notes that when a party files a motion to consolidate a notice of motion to consolidate "must" be "filed in each case sought to be consolidated." (Cal. R. Ct. 3.350 (a)(C). A review of the docket in this matter fails to reveal a notice of motion to consolidate filed in this matter. As such, it is unclear that a properly filed motion to consolidate is actually pending.

Plaintiffs had the option – and arguably the duty – to seek leave to amend in the 03021 Matter if they believed that additional parties (i.e. heirs) were necessary to that suit. "Because there is only a single action for wrongful death, an heir bringing the action ***should join all known heirs***. If an heir refuses to join as a plaintiff, he or she may be named as a defendant, so all heirs are before the court in the same action." (*Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 77 quoting *Smith v. Premier Alliance Ins. Co.* (1995) 41 Cal.App.4th 691, 696-97.)

The filing of this separate action is contrary to the law and only creates extra work for the parties as well as the Court. Plaintiffs have provided no legal authority to support maintaining a separate action.

Conclusion

Defendant's demurrer is **SUSTAINED**.

16. 9:00 AM CASE NUMBER: C25-01992
CASE NAME: JUSTIN WANG VS. TESLA, INC
HEARING IN RE: APPLICATION OF JAMES CULLEN EVANS TO APPEAR PRO HAC VICE ON BEHALF OF DEFENDANTS
FILED BY: TESLA, INC
TENTATIVE RULING:

Parties to Appear

17. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by the City of Richmond and Hector Lopez to the complaint. For the reasons set forth, the Court rules as follows: (a) the demurrer to the Complaint in its entirety is **OVERRULED**; and (b) the demurrer to the first through ninth causes of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Mr. Malboubi located on 24th Street in the City of Richmond. (Compl. ¶¶ 2, 3.) (The City represents Mr. Lopez retired as a City planner on August 16, 2025. (MPA ISO Dem. p. 7, fn. 1.))

Mr. Malboubi informed Mr. Lopez he wanted to subdivide the property into "two separate legal units." (Compl. ¶ 3.) Plaintiff alleges he obtained a survey and submitted an application and other paperwork to the City in April 2024. (Compl. ¶ 7.) Mr. Lopez informed him that for a lot split, because all six utility meters were located on one of the proposed parcels, three of the meters would have to be moved to the other proposed parcel so that each of the two properties had its own set of utility boxes. Mr. Malboubi alleges he informed Mr. Lopez by email on May 23, 2024 he wanted instead to proceed with the project as a condominium or townhouse conversion. (Compl. ¶¶ 9-11.)

Plaintiff describes a series of communications with Mr. Lopez, and Plaintiff's submission of proposed deeds, utility easements, and other documents requested by Mr. Lopez. He attaches an email from Mr. Lopez dated November 13, 2024 in which Mr. Lopez stated that, "If no objections are received, the City will issue an approval letter and forward the documents to the County for recordation." (Compl. ¶¶ 12-25.) He alleges a series of additional communications with Mr. Lopez after November 14, 2024. (Compl. ¶¶ 27-34.)

Plaintiff alleges he complied with Mr. Lopez's requests and expected after January 2025 the project would be approved. (Compl. ¶ 35.) He alleges on March 6, 2025, Mr. Lopez sent an email stating that

he met with the Director of Planning ("Director") for a final decision, and the Director imposed as a condition of approval separate utilities for the properties because only a condominium project with a homeowner association can utilize the arrangement proposed by Plaintiff with utilities located on a separate property and a utility easement. (Compl. ¶ 39.) He alleges he emailed Mr. Lopez on March 10 and 11, 2025 and asked if the March 6, 2025 email was a "final statement of decision" or if a formal "denial" would be issued but did not receive a response. (Compl. ¶ 43.) He alleges he was "willing to provide a simple HOA document," but he does not allege he provided such a document to support his application. (Compl. p. 16, ¶ k.)

Mr. Malboubi includes lengthy allegations regarding his "response" to issues raised by the City in approving the project, subject to relocation of certain utilities so that each separate property would have its own utilities. (Compl. ¶ 44.) Among his responses, Plaintiff alleges that he investigated relocating the utilities to comply with the condition imposed on his lot split application. Because there is no utility infrastructure located on 24th Street and the utility infrastructure is instead located on Gaynor Avenue, relocation of the utilities to create three separate lines for one of the proposed units is not feasible, but Mr. Lopez would not remove that condition. (Compl. ¶ 44.i.a.-j.) He alleges that the City has previously approved conversions of 2-4 unit properties into condominiums and includes documents he contends show two instances where properties with four or fewer apartment units were allowed to be converted to condominiums. (Compl. ¶ 44.)

Mr. Malboubi alleges that he exhausted all administrative remedies through the Planning Department and sought to appeal the decision to the City Council. (Compl. ¶ 45.) He alleges an Assistant City Clerk informed him he needed to appeal to the Planning Commission but that his efforts to place his project on the Planning Commission agenda for a hearing failed, as meetings were cancelled. (Compl. ¶¶ 46-51.) On May 28, 2025, Plaintiff alleges he renewed his request for a formal written denial and to be added to the Planning Commission agenda for hearing. (Compl. ¶ 52.) Mr. Lopez had advised him that notice to neighbors first had to be sent before Mr. Malboubi could appeal. (Compl. ¶¶ 51, 53.) Mr. Malboubi alleges that the City did not have any Planning Commission meetings in April and May 2025 because of lack of agenda items, and when he contacted the City and spoke to Mr. Lopez about his project being put on the June 19, 2025 Planning Commission agenda, he was informed the agenda was already full and the next available hearing date was in July. (Compl. ¶¶ 54-58.)

Mr. Malboubi alleges Mr. Lopez told him he had to cancel his application in order to "proceed to a Planning Commission meeting," and the City would only issue a formal denial if Plaintiff canceled his application. (Compl. ¶ 60.) Plaintiff contends he attempted to cancel the application but did not receive the formal denial letter as of the date of filing of his complaint on July 31, 2025. (Compl. ¶ 63.) Prior to filing suit, on June 1, 2025, Plaintiff filed a government claim with the City, which was rejected. (Compl. ¶¶ 66, 67, 72.)

On July 31, 2025, Plaintiff filed his complaint alleging nine causes of action against the City of Richmond and Mr. Lopez (the "City Defendants"). The City Defendants generally demur to the complaint in its entirety as well as to each of the causes of action.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the

complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

City's Requests for Judicial Notice and Plaintiff's Objection

The City Defendants requested judicial notice of various provisions of the Richmond Municipal Code ("RMC"), including article 15.04.711, and sections 15.04.702.010, 15.04.702.050, 15.04.703.010, 15.04.703.060, 15.04.703.070, 15.04.710.130, and 15.04.104.020. (Def. RJN Exhs. 1-8.) The City Defendants also filed a supplemental request for judicial notice with their reply, asking for judicial notice of Richmond Ordinance No. 8-83 and RMC section 15.04.702.090. (Def. Suppl. RJN Exhs. 9, 10.) The Court takes judicial notice of these RMC provisions and Richmond Ordinance. (Evid. Code § 452(b).)

Plaintiff's objections to the requests for judicial notice are **OVERRULED**. The City Defendants have not asked the Court to take judicial notice of any particular interpretation of the RMC provisions but rather of their existence. Further, Plaintiff's position that the allegations of a complaint must be accepted as true, even if contradicted by matters subject to judicial notice, is not a correct statement of the law. (*Evans, supra*, 38 Cal.4th at 6 [" "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"]).

Plaintiff's Multiple Oppositions and Exhibits Opposing the Demurrer

The City Defendants filed their demurrer on September 2, 2025 with the hearing date information left blank. Consistent with the local rules and practices of this Court, after the City Defendants filed their demurrer, the Clerk set a hearing date on the demurrer. The City served an "Amended Notice of Hearing" on the demurrer that notified Plaintiff of the hearing date (December 22, 2025) and repeated the text of the demurrer. Plaintiff filed an opposition to the demurrer and objection to the City Defendants' request for judicial notice on September 10, 2025. The City Defendants filed their reply to Plaintiff's opposition on December 15, 2025.

On December 18, 2025, Plaintiff filed another opposition to the demurrer with two sets of additional exhibits and an objection to the City Defendants' supplemental request for judicial notice. After the Court posted a tentative ruling continuing the hearing on the demurrer from December 22, 2025 to

January 26, 2026, on December 22, 2025 Plaintiff filed an additional set of exhibits.

The Court is aware of no authority that allows a party to file multiple oppositions to the same motion. Even if the Court considered the additional opposition papers as a supplemental opposition, the papers were untimely under Code of Civil Procedure section 1005, which requires opposition to a demurrer, treated like a motion under the applicable California Rules of Court, to be filed and served nine court days prior to the hearing. (Code Civ. Proc. § 1005(b); Cal. R. Ct., Rule 3.1103.)

The additional opposition is also 26 pages in length, far exceeding the 15-page limit for an opposition memorandum, and the second opposition does not have tables of contents and authorities as required. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"], and Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) The Court also has no proof of service on the December 18, 2025 and December 22, 2025 filings showing that Plaintiff served the pleadings on counsel for the City Defendants. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) In addition, as to the exhibits filed by Plaintiff in opposition to the demurrer, the Court cannot consider other evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

For these reasons, the Court will not consider Plaintiff's additional opposition papers filed on December 18, 2025 and December 22, 2025.

Analysis

A. Summary of Plaintiff's Claims

Plaintiff's first cause of action alleges he is entitled to a writ of mandate "compelling the city to approve Plaintiff's subdivision or condominium conversion and forward the necessary documents to the County for recordation" and "a declaration under Code of Civil Procedure § 1060 that, under the circumstances of this case, the City cannot lawfully condition approval on the relocation of utilities where main service lines are unavailable and inaccessible." (Compl. ¶¶ 10, 11.)

B. Demurrer to Complaint in Its Entirety

The City Defendants demur to the complaint as a whole on the grounds that Plaintiff failed to exhaust his administrative remedies by pursuing an appeal to the City Council and that the dispute is also not ripe because Plaintiff has not completed the administrative review process. "A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.)

The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 ["With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional"

prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"'). Ripeness is related to exhaustion. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 156.) Ripeness concerns whether a controversy is "definite and concrete" such that specific, conclusive relief can be granted. (*Pacific Legal Foundation v. California Coastal Commission* (1982) 33 Cal.3d 158, 171.)

1. The City Defendants' Position

The City argues that an application for a tentative parcel map, which is a map for a subdivision of four or fewer parcels pursuant to Government Code section 66426, "is reviewed by the Planning Commission" and after a public hearing, the Planning Commission has to approve, conditionally approve, or deny the map, citing RMC sections 15.04.703.060 and 15.04.703.070. (MPA ISO Dem. p. 12, ll. 12-15.) RMC section 15.04.703.060 states in part "the Zoning Administrator shall schedule the proposed map for review and public hearing by the Planning Commission and shall provide notice of the public hearing" on a completed application. (Emphasis added.) The Planning Commission's decision is then appealable to the City Council. (MPA ISO Dem. p. 12, ll. 15-17.)

The City contends the procedures of RMC section 15.04.703.060 apply to a condominium conversion, which is considered a subdivision. (MPA ISO Dem. p. 12, ll. 17-18, citing Govt. Code § 66414 and RMC § 15.04.711.020.) The City argues until the City Council has resolved any appeal through this process, Plaintiff has not exhausted his administrative remedies, and the dispute is also not ripe because the available administrative process is not complete. (MPA ISO Dem. p. 14, ll. 1-10.) (*See DeLaura v. Beckett* (2006) 137 Cal.App.4th 542, 545-547 [affirming order sustaining demurrer to declaratory relief claim over City rent control ordinance where the rent control ordinance provided an administrative remedy to landlord].) The Court agrees with the City, in part.

2. Court's Analysis

Plaintiff's complaint shows that Plaintiff submitted a parcel map for a lot split, proposing to divide his property into two legally separate lots with a utility easement to address the lack of utility meters on one of the two proposed parcels. (Compl. ¶¶ 3-10, 13-18, 22, 32-34, 39 and Exhs. B-F, G, I.) Plaintiff points to Exhibit J to the complaint as a definitive statement of the determination by the Director (who is the Zoning Administrator) demonstrating a determination was made by the City, supporting exhaustion and ripeness of the dispute. In Exhibit J, Mr. Lopez indicates Plaintiff's proposed utility easement arrangement for the lot split is only allowed "for condominium projects where a Homeowner Association is created. Your subdivision involves the creation of separate parcels of land and the decision of the Director is to approve it, subject to having separate utilities serving each parcel." (Compl. Exh. J – 3/6/2025 email [emphasis added].)

The Court finds that exhaustion of administrative remedies is **satisfied** to the extent Plaintiff is challenging the City Defendants' determination of Plaintiff's application for a lot split subdivision. Though the City Defendants point to RMC sections 15.04.703.060 and 15.04.703.070 as governing the administrative process, which would provide a hearing before the Planning Commission for approval of the parcel map, other portions of the RMC provide a different avenue for administrative approval and appeal of the parcel map for the subdivision. (See RMC §§ 15.04.104.020 Definitions ["Zoning Administrator" and "Director"], 15.04.702.010 E. and F. [defining the Zoning Administrator and Director as the Director of Planning and Zoning, and providing that the Zoning Administrator is

"responsible for the approval, conditional approval or denial of Parcel Maps," and the Planning Commission is "responsible for approving, conditionally approving, or denying tentative maps for Major Subdivisions and appeals of Parcel Maps." (Emphasis added.)). (See also Compl. Exh. J regarding the Director's "decision" on the parcel map.) These provisions (RMC section 15.04.703.060 and RMC section 15.04.702.010 E and F) are in conflict as to whether the Zoning Administrator/Director or the Planning Commission approves the parcel map and the applicable administrative and appeal process.

The City Defendants state in their opening memorandum: "[T]he City is willing to present the Application to the Planning Commission. The City had waited to see if Plaintiff would accept the requirement (or condition of approval) to relocate utilities. Unfortunately, it has become evident that Plaintiff insists on approval upon his terms. But if he still wants a Planning Commission hearing on his Application, the City will provide it." (MPA ISO Dem. p. 16, fn. 6 [emphasis added].) The City Defendants in effect concede that the City failed or refused to provide Plaintiff the administrative remedy they contend is appropriate under RMC section 15.04.703.060, which mandates that the Zoning Administrator schedule a hearing on a completed application. The City Defendants question whether the March 6, 2025 email setting forth the Director of Planning's determination to approve the parcel map subject to the condition that separate utilities be provided to each property, but the email clearly stated the Director's decision. Under the alternative, conflicting RMC provisions cited above, it is also clear that the Director did not issue a Notice of Action on his "decision" reflected in Exhibit J to trigger the appeal process for a hearing before the Planning Commission. (MPA ISO Dem. p. 16, fn. 6.)

With respect to the proposed lot split and the conditions for such a subdivision, the facts alleged in the complaint, accepted as true, support that (a) the City's administrative procedures in RMC sections 15.04.703.060, 15.04.703.070, and 15.04.702.010 E. and F. are inconsistent, and fail to provide a clear set of administrative procedures for obtaining and challenging the Director's decision, and (b) the City's refusal to bring his completed application before the Planning Commission for a public hearing and approval despite his repeated efforts to do so, even by cancellation of his application which should have resulted in a denial letter, left Plaintiff with no administrative remedy available, or no adequate remedy, to address the City's refusal to advance the application to the Planning Commission. The Court finds persuasive the position that under the circumstances, the March 6, 2025 email (Exhibit J) provides a sufficiently definite decision on the lot split to make the controversy over the decision ripe.

Plaintiff, however, also alleges that he cancelled his lot split application and that he instead sought to pursue a condominium conversion for the Property. He seeks relief in the complaint based on the City's failure to approve his application as a condominium conversion. But the record before the Court does not support that Plaintiff had before the City a complete application for approval of a condominium conversion for the Property or that the City made any decision regarding a condominium conversion for the Property.

Plaintiff himself though cites the Civil Code definition of a "condominium project, which is "a real property development consisting of condominiums," and a condominium in turn is defined as "an undivided interest in common in a portion of real property coupled with a separate interest in space

called a unit, the boundaries of which are described on a recorded . . . parcel map . . ." (Civ. Code § 4125(a) and (b) [emphasis added].) Plaintiff alleges that "the creation of two condominium units on a single parcel is legal and does not require the creation of new legal lots" (Compl. p. 16, ¶ j [emphasis added]), but he does not allege the application documentation presented to the City for a condominium conversion included a parcel map for a single parcel with condominium units and common areas, nor did he submit any condominium or homeowners association documentation to the City as part of the application, which Plaintiff admits in his own allegations. (Compl. p. 16, ¶ k ["If Defendant's concern was the lack of a Homeowners Association, Plaintiff made clear that he was willing to provide a simple HOA document to address the City's concern."] and Exh. J [3/6/2025 email stating utility easement arrangement that would only be sufficient for a condominium project with a homeowner's association.]) The parcel maps Plaintiff submitted to the City do not appear to show an "undivided interest in common in a portion of the real property" and "units" with boundaries described in the proposed parcel maps; the parcel maps and related documents show a lot split subdivision. (Compl. Exhs. B-F, H, I.)

Because the Court finds that Plaintiff has exhausted his administrative remedies to the extent his claims are based on the conditional approval of the lot split subdivision, the demurrer to the complaint in its entirety based on lack of exhaustion and ripeness is **OVERRULED**. The Court will not, however, consider the merits of Plaintiff's claims to the extent they are based on failure to approve his application as a condominium conversion for lack of exhaustion and ripeness.

C. Petition for Writ of Mandate and Declaratory Relief (1st Cause of Action)

The City Defendants argue this cause of action fails for several reasons on its merits. Based on the Court's ruling on exhaustion and ripeness, the Court only addresses this cause of action to the extent it is based on the City's alleged improper conditional approval of the lot split subdivision.

1. City's Offer for Planning Commission Hearing to Resolving This Cause of Action

As a preliminary matter, the City Defendants argue in a footnote that the City is willing to provide Plaintiff an administrative hearing before the Planning Commission, a hearing the City impliedly admits it refused to provide previously. (MPA ISO Dem. p. 12, fn. 6.) Based on that offer, the City Defendants conclude: "Thus, no writ is warranted to compel a hearing. (*See Hutchison v. Reclamation Dist. No. 1619* (1927) 81 Cal.App. 427, 433 ['writ may be denied when the respondent shows a willingness to perform the act without coercion'].)"

Plaintiff's first cause of action does not ask for an order compelling a hearing before the Planning Commission. Instead, he asks the Court to direct the City to approve his application and for a declaration he does not have to relocate the utilities. (Compl. ¶¶ 10, 11; Prayer for Relief ¶¶ 2, 3.) The City's offer to now set a hearing before the Planning Commission therefore does not warrant denial of the writ under the *Hutchison* case for that reason. On the other hand, the City in effect concedes it should have provided Plaintiff a hearing before the Planning Commission on his lot split application and the conditions imposed. The City's position supports that to the extent the demurrer to this cause of action is sustained and Plaintiff is given leave to amend, Plaintiff could at a minimum state a cause of action for a writ of mandate directing the City to schedule a hearing on his lot split application before the Planning Commission.

2. Declaratory Relief Not Available to Challenge Administrative Decision

Plaintiff's first cause of action combines a petition for writ of mandate with a request for declaratory relief. The City Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Id.* at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted]." the Court stated the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The request for declaratory relief to review the City's administrative decision is not available under these authorities. Since a demurrer to a cause of action can only be sustained if it fully disposes of the cause of action (*see, e.g., PH II, supra*, 33 Cal.App.4th at 1682-1683), the Court considers whether the first cause of action adequately state a claim for a writ of mandate in addition to declaratory relief.

2. Grounds for Relief Under Traditional Mandamus, Code of Civil Procedure section 1085

Plaintiff seeks a writ of mandate "compelling the city to approve Plaintiff's subdivision or condominium conversion." (Compl. ¶ 10.) He prays for an injunction or writ of mandate "directing Defendants to approve Plaintiff's application to subdivide and/or convert the duplex property . . . into two separate legal condominium or townhouse units," and an order "requiring Defendants to forward the approved parcel map and all necessary documentation to the Contra Costa Recorder's Office for recordation." (Prayer for Relief ¶¶ 2, 3.)

a. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station . . ." (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721.) (*See also Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in

obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted.]" (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721.) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency. [Citations.] . . . " ' [Citation omitted.]" (*Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

b. No Clear, Present and Mandatory Ministerial Duty

Plaintiff contends the City has a mandatory duty to approve the parcel map and allow him to "subdivide and/or convert" his duplex into a condominium because his proposed conversion of the duplex meets the definition of a condominium under former Civil Code section 1351, a statute that was repealed in 2014. The current statute defining a condominium project and condominium is Civil Code section 4125 and is quoted above. He makes other legal arguments as to why he was entitled to have the City approve his Property for a condominium conversion, including preemption under Government Code section 66428(b) of the Subdivision Map Act ("SMA"). Plaintiff cites Government Code section 66428(b) and RMC section 15.04.711.010 as creating the mandatory duty on the City that he alleges in this cause of action.

Government Code section 66428(b) only requires that a local agency enact an ordinance establishing a procedure for waiving the requirement of a parcel map, but it gives the local agency discretion as to the nature and application of the waiver procedure. "The procedure may include provisions for waiving the requirement for a tentative and final map for the construction of a condominium project on a single parcel. The ordinance shall require a finding by the legislative body or advisory agency, that the proposed division of land complies with requirements established by this division or local ordinance enacted pursuant thereto as to area, improvement and design, floodwater drainage control, appropriate improved public roads, sanitary disposal facilities, water supply availability, environmental protection, and other requirements of this division or local ordinance enacted pursuant thereto. In any case, where the requirement for a parcel map is waived by local ordinance pursuant to this section, a tentative map may be required by local ordinance." (Govt. Code § 66428(b) [emphasis added].)

Plaintiff does not explain how Government Code section 66428(b) creates a clear, present ministerial duty mandating that the City approve his subdivision or condominium conversion, including Plaintiff's proposed parcel map and related documentation, without the exercise of any discretion. The SMA statute does not mandate that the City waive a parcel map for a condominium conversion and only gives the City the right to choose whether to waive a parcel map for "construction of a condominium project," which the City did not do in its local ordinance. The City's ordinance with a procedure for waiver of a parcel map, RMC section 15.04.702.090, allows a subdivider to make an "application for waiver of parcel map" in two circumstances, neither of which is applicable to Plaintiff or his duplex. (RMC § 15.04.702.090 A. 1. and 2.) Even if the parcel map requirement is waived, "a tentative map shall be required." (RMC § 15.04.702.090 C.) Plaintiff does not allege that he made an application for

waiver of a parcel map for his subdivision/condominium conversion in any event. Rather, he alleges that he applied to subdivide or convert his duplex and submitted a proposed parcel map as part of that application process. (Compl. ¶¶ 3, 9, 10-18, 21, 22, 26 [project a minor subdivision], and Exhs. B-F.)

It is not clear to the Court that RMC section 15.04.711.010 would apply since it is titled "Standards for New Residential Condominiums," the stated purpose refers to ensuring "new condominiums meet sound construction criteria," and includes a long section on "Development Standards" that appear to have no application to the conversion of a duplex to a condominium. (RMC § 15.04.711.010 A.1 and B.) But Plaintiff himself alleges that "§ 15.04.711.010 applies to new developments of condominiums, stock cooperatives, and community apartments and is not intended to govern minor subdivisions of 2-4 unit residential properties such as Plaintiff's." (Compl. ¶ d., p. 17, ll. 24-28 [emphasis added].)

In any event, RMC section 15.04.711.010 has requirements for Covenants, Conditions and Restrictions (CC&Rs) for a condominium project. It "require[s]" CC&Rs to be "developed" and "reviewed and approved by the City Attorney and Zoning Administrator prior to approval of the Final or Parcel Map." There are detailed provisions which must be included in the CC&Rs, among other things referring to an "Association" and its powers or duties for making annual assessments for maintenance and special assessments for capital improvements, and the Condominium Owners' Association having "an easement for entry upon any privately owned unity, where necessary, in connection with the construction, maintenance, or repair for the benefit of the Common Area or owners of the units in common." (RMC § 15.04.711.010 C., including C.3., C.5, C.8, and C. 9.) Plaintiff admits he did not submit any homeowners association or condominium association document to the City with his application. (Compl. p. 16, ¶ k.)

These authorities do not demonstrate that the City had no discretion to require the relocation of the utility meters as part of the approval of the Property for a lot split subdivision, the only application which was complete and decided by the City based on the March 6, 2025 email Plaintiff relies on to demonstrate exhaustion and that his dispute with the City is ripe. (Compl. Exh. J.) Though Plaintiff's complaint includes allegations as to why relocation of the utility meters was impractical, because of delay and expense, Plaintiff cites no authority that makes the alleged impracticality a basis for concluding the City had a clear, present, and mandatory duty to approve the lot split subdivision based on the utility easement without a homeowners association or without the utility meter relocation condition. (Compl. pp. 12-14, ¶¶ a-j.) Plaintiff has not cited any authority that delay or expense of a proposed condition converts the approval of a subdivision to a purely ministerial duty without any discretion to impose such a requirement on the approval of the subdivision.

Plaintiff cannot base his petition for writ of mandate on the City's alleged failure to approve the Property for a condominium conversion on the current record. The allegations of the complaint and exhibits show the City only addressed the application as a lot split subdivision based on the documentation Plaintiff presented. That the record does not provide a basis for finding the City made a determination on Plaintiff's project as a condominium conversion which the City had to approve under RMC section 15.04.711.010. Even if Plaintiff contends that, despite the documents presented to the City show the Property being divided into two separate legal lots, the City was "really" treating the application as a condominium conversion, for the reasons stated above, Plaintiff does not explain

how either Government Code section 66428(b) or any provisions of RMC section 15.04.711.010 mandate approval of his application for a condominium conversion. Plaintiff does not allege his application to the City included any CC&Rs or provided for a Condominium Owners' Association. To the contrary, he admits it did not since he alleges only he was "willing to provide" a homeowners association document. (Compl. p. 16, ¶ k.)

The demurrer to the first cause of action is **sustained, with leave to amend**.

D. Abuse of Discretion, Misapplication of Municipal Code, and Declaratory and Injunctive Relief Claims (2nd, 5th and 7th Causes of Action)

Plaintiff alleges subsequent causes of action that are generally duplicative of the first. In the second cause of action, he alleges the City abused its discretion in not approving his proposed lot split or condominium conversion as presented. (Compl. pp. 38-39.) He alleges the City misapplied the RMC provisions to his proposed lot split/condominium conversion by applying RMC section 15.04.711.020 instead of RMC section 15.04.711.010 in his fifth cause of action. (Compl. p. 41.) He seeks declaratory and injunctive relief in his seventh cause of action, requesting the same relief as the first cause of action to compel the City to approve his application as presented. (Compl. pp. 42-43.)

For the same reasons the first cause of action fails to allege facts that state a right to a writ of mandate or declaratory relief, the seventh cause of action fails. Plaintiff seeks "injunctive relief compelling the City to approve and forward the parcel map for recordation." (Compl. 7th C/A ¶ 3.) The seventh cause of action is duplicative of the first. Injunctive relief is a remedy for an injury that must be founded on a substantive claim against the defendants, in this case, based on Plaintiff's right to a writ of mandamus. (*Camp v. Board of Supervisors* (1981) 123 Cal.App.3d 334, 356 ["Injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief may be granted"]; *Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 984-985 [same].) The demurrer to the seventh cause of action is **SUSTAINED** on these grounds.

As to the "abuse of discretion" cause of action (2nd C/A), in determining a writ of mandate based on a city's interpretation and implementation of its own ordinance, the Court's evaluation "[]" is limited to an inquiry into whether the action was arbitrary, capricious or entirely lacking in evidentiary support. [Citation.]' . . . [Citation, some internal quotation marks omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1082.) The Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1091.) Plaintiff's allegations in the second cause of action are that "Lopez and the City of Richmond had discretionary authority to approve or deny the application" but must do so in good faith. (Compl. ¶ 4.) The allegation contradicts the allegations of the first and seventh cause of action that the City Defendants had a mandatory, ministerial duty to approve his application.

The fact that Plaintiff proposed a utility easement to address access to the public utilities necessary to service one of the parcels once the property was divided into two separate legal lots implicitly concedes the existence of a legitimate government objective of providing utility service and monitoring the utility meters servicing the properties. As Plaintiff alleges, his objection to relocating the three meters to the property being serviced by the utilities was the delay and expense, not the fact the City had a legitimate government interest it was trying to enforce. (Compl. ¶ 10.) The facts as

presently alleged in the Complaint are insufficient to state a claim that the condition imposed in the March 6, 2025 was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.)

Plaintiff alleges that his application was in "full compliance" with the requirements for "a minor subdivision and/or condominium conversion" and that the City Defendants abused their discretion in applying RMC section 15.04.711.020 to his project. (Compl. pp. 38-39.) For the reasons set forth above, it is not clear that RMC section 15.04.711.010 applies or that Plaintiff alleges facts showing he has met the requirements of that statute if, as he alleges, that statute applies to his minor subdivision or condominium conversion, at least with respect to a Condominium Owners' Association and CC&Rs. (See also Compl. Exhs. B, C, F, H [utility easements], and J [approval subject to change in utility box location, referring to projects with Homeowners' Association which his project does not have].)

The record indicates that to the extent Plaintiff intended to apply for a condominium conversion which would require, among other things, a homeowners association with applicable documentation, that document was not submitted to the City, and Plaintiff has not exhausted his administrative remedies as to any condominium conversion determination. The Court therefore does not address the arguments regarding preemption of any prohibition on a condominium conversion for less than five units under RMC section 15.04.711.020. Claims regarding abuse of discretion, misapplication of the RMC, and declaratory and injunctive relief for failure to approve the Property for condominium conversion are also not ripe for the reasons indicated above.

The facts alleged in the complaint and attached exhibits are insufficient to support that the City Defendants' decision to approve the lot split subject to relocation of the utility meters was "arbitrary, capricious or entirely lacking in evidentiary support" under the RMC. Again, Plaintiff's arguments primarily rely on his position that the City had to approve his application as a condominium conversion despite admittedly missing homeowners association documents for a condominium project and the parcel maps submitted for two separate legal lots, not a single property with defined unit boundaries and common areas. (Civ. Code § 4125.)

The demurrer to the second cause of action is therefore also **SUSTAINED** for these reasons.

These reasons also support sustaining the demurrer to the fifth cause of action for "misapplication of Municipal Code," as the facts as alleged do not show the City Defendants misapplied RMC sections 15.04.711.010 and 15.04.711.020 to Plaintiff's application for a lot split subdivision. Plaintiff has failed to exhaust his administrative remedies as to his claims regarding the City's failure to approve a proposed condominium conversion, and those claims are not ripe. The demurrer to the fifth cause of action is **SUSTAINED**.

E. Equal Protection and Discrimination (4th and 6th Causes of Action)

"The federal equal protection clause (U.S. Const., 14th Amend.) and its California counterpart (Cal. Const., art. I, § 7, subd. (a)) provide that persons who are similarly situated with respect to the legitimate purpose of a law must be treated alike under the law. [Citations omitted.] Equal protection challenges typically involve claims of discrimination against an identifiable class or group of persons. The United States Supreme Court in *Village of Willowbrook v. Olech* (2000) 528 U.S. 562, 564 (*Olech*), however, held that a plaintiff who does not allege membership in a class or group may state a claim

as a "class of one." [Citation omitted.] (*Las Lomas Land Co., LLC v. City of Los Angeles* (2009) 177 Cal.App.4th 837, 857.) "To state a "class of one" equal protection claim, the plaintiff must allege that '(1) the plaintiff was treated differently from other similarly situated persons, (2) the difference in treatment was intentional, and (3) there was no rational basis for the difference in treatment.' [Citation omitted.]" (*California Resources Production Corp. v. Antioch City Council* (2024) 107 Cal.App.5th 481, 490 [affirming order sustaining demurrer to "class of one" equal protection claim].)

The Court in *California Resources Production Corp.* explained, "When a plaintiff seeks to prevail in a 'class of one' equal protection case, 'the existence of persons in similar circumstances who received more favorable treatment than the plaintiff is offered to provide an inference that the plaintiff was intentionally singled out for reasons that so lack any reasonable nexus with a legitimate governmental policy that an improper purpose—whether personal or otherwise—is all but certain.' [Citation omitted.] For this inference to arise, ' "the level of similarity between [the plaintiff] and the persons with whom they compare themselves must be extremely high." ' [Citations omitted.]" (*California Resources Production Corp., supra*, 107 Cal.App.5th at 491-492 [emphasis added].)

Plaintiff does not allege in the Complaint that he was denied equal protection of the laws or was discriminated against based on his status as a member of a protected class. Rather, Plaintiff alleges in the fourth cause of action that the City Defendants denied him equal protection of the laws because the City Defendants refused to approve his condominium conversion, but they approved condominium conversions of other properties with four or fewer units without requiring separate utility meters for each unit to be located (or relocated) to each unit at the project. He alleges Defendants' denied Plaintiff's condominium conversion application but Exhibit J to the Complaint indicates the City Defendants approved the lot split subdivision application but imposed a condition on approval regarding moving the utility boxes to which Plaintiff objects as based on "inconsistent standards" or "unreasonable." (Compl. pp. 40-41.)

Plaintiff's equal protection and discrimination claims are based entirely on the City's failure to approve the Property for a condominium conversion, a claim which the Court concludes Plaintiff has not shown he can pursue based on his failure to exhaust his administrative remedies and lack of ripeness of the dispute over converting the Property to a condominium Project. As a claim based on the City's imposition of an improper condition on the lot split subdivision, Plaintiff does not allege the facts necessary to show an extremely high level of similarity with the treatment of other properties and property owners, since the two properties Plaintiff alleges for comparison were both condominium projects, not lot split subdivisions in which one property was divided into two legally separate parcels with no common areas or condominium or homeowners association. (See Compl. pp. 19-23 and Exh. M [notably, referring to a parcel map recorded in 1980 and CC&Rs recorded in 1992]; pp. 21-23 and Exh. Q [notably, Plaintiff alleges Mr. Lopez informed him the Barrett Property was constructed as a new condominium project, not a condominium conversion].) The Complaint therefore fails to allege facts sufficient to state these causes of action as to the City's approval of the lot split subdivision, with the relocation of utility meter condition, the only determination made by the City Defendants as to which Plaintiff has exhausted his administrative remedies, and which is ripe for review.

The demurrer to the fourth and sixth causes of action is **SUSTAINED**.

F. Negligence (3rd Cause of Action)

Negligence is a tort. Under Government Code section 820, "Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Govt. Code § 820(a).) To the extent that the public employee Mr. Lopez is immune from liability under the Government Code, the City will also be immune. (Govt. Code § 815.2(b) [generally, public entity not liable "for an injury resulting in an act or omission of an employee of the public entity where the employee is immune from liability."].) Statutory liabilities of public entities and public employees under Government Code section 815 are subordinated to statutory immunities. (*Torres v. Department of Corrections & Rehabilitation* (2013) 217 Cal.App.4th 844, 849 [citing *Harshbarger v. City of Colton* (1988) 197 Cal.App.3d 1335, 1340–1341].)

Plaintiff alleges the City Defendants breached a duty of care owed to him in reviewing and processing his land use application by not "properly" applying the land use provisions of the RMC, giving "misleading or inconsistent guidance" to Plaintiff, "delaying or obstructing" the application process despite his contention that he had completed all the requirements, and by Mr. Lopez acting "without the diligence and competence expected of a public official in his role." (Compl. pp. 39-40, 3rd C/A ¶¶ 2-4.) Plaintiff does not allege and has not cited in his opposition any statute imposing liability on the City itself for negligence. An employee of a public entity has immunity for discretionary acts, whether or not the employee abused his or her discretion. (Govt. Code § 820.2 [generally, "a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of discretion vested in him, whether or not such discretion be abused"].)

The City Defendants also cite Government Code sections 818.4 and 821.2. A public entity is immune from liability for the public entity or its employee's denial or failure or refusal to issue "approval, order or similar authorization where the public entity or an employee of a public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." (Govt. Code § 818.4.) An employee of a public entity has similar immunity. (Govt. Code § 821.2 ["A public employee is not liable for an injury caused by his issuance, denial, suspension or revocation of, or by his failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where he is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked."].)

Plaintiff does not address these authorities in his opposition, including the specific immunities for a failure or refusal to issue or deny permits, licenses, certificates, approvals, orders or "similar" authorizations. (Govt. Code §§ 818.4 and 821.2.) Plaintiff does not dispute that the City Defendants were authorized under the SMA and RMC "to determine whether or not such authorization should be" issued or denied. (*Id.*)

The demurrer to the third cause of action is **SUSTAINED**.

G. Failure to Perform Mandatory Duty (8th Cause of Action)

Plaintiff alleges the eighth cause of action under Government Code section 815.6 which provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it

exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be *obligatory*, rather than merely discretionary or permissive, in its directions to the public entity; it must *require*, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.].' [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶] 'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

To the extent that this cause of action is based on a claim that the City had a mandatory duty to approve Plaintiff's application without imposition of the condition of relocating the utility boxes, Plaintiff has not presented applicable law mandating such approval, and therefore, has not alleged facts sufficient to show that the City violated a mandatory duty in not so approving his application. (See Analysis Sections C and D above.) To the contrary, the immunity provisions of Government Code sections 818.4 and 821.2 make the City and Mr. Lopez immune from liability for failure or refusal to issue a permit, license, approval, certificate or "similar authorization." To the extent this cause of action is based on that contention, the cause of action as pled fails.

Nevertheless, Plaintiff's Complaint with regard to the eighth cause of action is ambiguous. Plaintiff incorporates all his prior allegations into this cause of action which allege the City Defendants had a mandatory duty to approve his application without the condition to which he objects. (Compl. p. 43, 8th C/A, ¶ 1.) However, Plaintiff's allegations in connection with this cause of action also include allegations that the City Defendants are liable for "failing to carry out the ministerial task of issuing a decision and processing the completed application," that the City "had a ministerial duty to review and process the application in accordance with applicable Municipal Code sections," and that the City Defendants "failed to act as required by law." (Compl. p. 35, ¶ 8 [Failure to Perform a Mandatory Duty] and p. 43, 8th C/A, ¶¶ 3 and 5 [emphasis added].)

As set forth above, while the City Defendants may have had discretion in determining whether to approve Plaintiff's application for the condominium conversion or lot split, the RMC on its face imposes a mandatory obligation to issue a Notice of Action based on the Zoning Administrator/Director of Planning's decision once made (RMC §§ 15.04.104.020 Definitions ["Zoning Administrator" and "Director"], 15.04.702.010 E and F) or to set the application for hearing on the Planning Commission agenda and give notice of the hearing (RMC §§ 15.04.703.060 and 15.04.703.070). Indeed, the City Defendants in effect admit they did not comply with the requirement to set a hearing on Plaintiff's application before the Planning Commission based on their contention

the application is governed by RMC sections 15.04.703.060 and 15.04.703.070, in offering to schedule the hearing they failed to notice. (MPA ISO Dem. p. 16, fn. 6.) The failure by the City Defendants to issue a Notice of Action and serve notice as required or to set a hearing on the application before the Planning Commission may be a failure to perform a mandatory duty imposed under the RMC that could support the first element necessary to state this cause of action.

As to the second element, the lack of a Notice of Action or failure to schedule the application for hearing before the Planning Commission deprived Plaintiff of the opportunity for a hearing before the Planning Commission to address the applicable RMC and SMA provisions and to make his case that the utility boxes could not be relocated in the absence of utility lines under 24th Street. The provisions for the Notice of Action and scheduling of the Planning Commission hearing appear to be intended to protect the applicant's right to address concerns regarding the application or conditions imposed, such that the injury Plaintiff alleges he suffered is one that the mandatory duties under the RMC are designed to protect against.

A statutory cause of action, however, must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) Plaintiff's allegations regarding discretionary duties which are at least in part the basis for this cause of action do not support the claim. Despite some allegations referring to reviewing and processing the application, the allegations that "Plaintiff met all criteria for approval" and "failed to act as required by law" (Compl. p. 43, 8th C/A ¶¶ 4, 5) in the context of the other allegations of the complaint incorporated into this cause of action suggest it is the failure by the City to approve the lot split subdivision without the utility relocation condition or to approve the application as a condominium conversion are the mandatory duties Plaintiff is alleging the City failed to perform. To the extent those are the mandatory duties Plaintiff asserts the City failed to perform, the claim fails to state a cause of action for the reasons detailed above. At a minimum, the allegations are so unclear and uncertain they fail to meet the specificity of pleading requirement.

Plaintiff may be able to allege a breach of mandatory duty to state this claim with respect to failure to issue a Notice of Action or schedule the Planning Commission hearing. The Court cannot conclude that the complaint as presently pled is asserting either of those failures as the basis for this cause of action and as the relief he requests on this cause of action. The demurrer to the eighth cause of action is therefore **SUSTAINED**.

H. Retaliation (9th Cause of Action)

The City Defendants argue that Plaintiff's ninth cause of action labeled "retaliation" is a tort claim barred for the same reasons the negligence claim is barred. Plaintiff's retaliation cause of action alleges (a) after Plaintiff filed his government claim, the City "issued an undated inspection notice, which appeared retaliatory," and (b) the City's claims investigator who apparently reviewed Plaintiff's government claim "suggested that filing a lawsuit would result in Plaintiff being forced to pay the City's legal fees." (Compl. pp. 43-44, 9th C/A ¶¶ 2, 3.) The issuance of an inspection notice or "suggestion" Plaintiff could be liable for attorneys' fees both appear to be discretionary acts to which the immunity of Government Code section 820.2 would apply, even if the City Defendants abused their discretion. Plaintiff cites no contrary authority and does not address why the discretionary

immunity statute does not apply.

The demurrer to the ninth cause of action is **SUSTAINED**.

18. 9:00 AM CASE NUMBER: MSC17-01266

**CASE NAME: PETER NOWICKI VS. CONTRA COSTA COUNTY EMPLOYEES' RETIREMENT ASSOCIATION
HEARING ON PETITION IN RE: WRIT OF MANDATE**

FILED BY:

TENTATIVE RULING:

Before the Court issues a writ of mandate on Petitioner's Fourth Amended Petition, the Petitioner asks that the Court resolve several issues: (1) the proper prejudgment interest rate; (2) whether the Contra Costa County Employees' Retirement Association ("CCCERA") should be held responsible for the Moraga-Orinda Fire District's interest rate payment; and (3) reconsideration of the Court's order denying leave to amend the petition entered on August 13, 2024.

As a threshold issue, the Court notes that Petitioner's request that "the Court reconsider its order denying Mr. Nowicki's motion for leave to amend for the sole purpose of permitting Mr. Nowicki to recover the interest from the Fire District" is both untimely and unsupported by new facts or law. Motions for reconsideration must be brought "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc. § 1008(a).)

For the following reasons, the Court concludes that the Civil Code section 3287's prejudgment interest rate of 7% applies and CCCERA cannot be compelled to pay interest on Petitioner's Replacement Benefit Plan payments from the Fire District.

General Factual and Procedural Background

Petitioner Peter J. Nowicki joined the Moraga-Orinda Fire District in 1983 as a firefighter. He advanced through the ranks and in July 2006 was promoted to the position of Fire Chief. Mr. Nowicki's fire chief employment contract included an annual salary of \$173,000 and other benefits, including accrual of vacation time at the rate of 20 hours per month, with a maximum accrual of 400 hours. In compliance with the terms of his employment agreement, Nowicki made contributions to CCCERA.

In May 2007, Mr. Nowicki submitted documentation to the Fire District Board regarding his annual performance evaluation to support a salary increase. His contract was amended on February 6, 2008, but made retroactive to July 2007, which increased his annual salary to \$186,000. It also included a vacation sell-back provision to off-set the loss of accrued vacation in excess of the 400 hour annual cap. Mr. Nowicki exercised the sell-back option several times. Nowicki's salary was retroactively adjusted two more times.

On January 30, 2009, Mr. Nowicki retired from the Fire District at the age of 50 with a pension benefit

calculated by multiplying his highest compensation over any consecutive 12 months of employment by the product of 3% and his accrued years of 28.3 service. This resulted in a gross monthly pension benefit of \$20,076.00 before deduction of taxes and other withholdings.

More than 6.5 years after his retirement, on August 5, 2015, Mr. Nowicki received a letter from CCCERA informing him that the CCCERA Board had scheduled a hearing on September 9, 2015 to review his acts of “pension spiking.” Mr. Nowicki attended the Board meeting on September 5, 2015.

On September 11, 2015, Mr. Nowicki received a letter from CCCERA informing him that his pension would be reduced to \$14,667.74 per month, retroactive to the date of his retirement, on the grounds that Nowicki had caused his “final average salary (compensation earnable) to be improperly increased at the time of retirement.” The Board reduced the retirement allowance from over \$240,000 per year to about \$175,000 per year. On September 21, 2015, Nowicki received a letter from CCCERA alleging that he had received overpayments in the amount of \$585,802, including interest.

On October 13, 2015, Mr. Nowicki filed, *in propria persona*, a writ petition pursuant to Code of Civil Procedure section § 1094.5 in this Court seeking to overturn the Board’s decision. CCCERA filed a response. Almost a year and a half later, Mr. Nowicki filed a dismissal of that matter, without prejudice, when he filed a Verified Complaint for Injunctive Relief, Damages and Jury Demand before the United States District Court, Northern District of California on February 7, 2017.

On June 27, 2017, the federal court granted CCCERA’s motion to dismiss Mr. Nowicki’s three federal claims with prejudice, declined to take supplemental jurisdiction over Mr. Nowicki’s state law claims, and entered judgment for CCCERA based on lack of subject matter jurisdiction. The Federal Court entered judgment on July 17, 2017. (See *Nowicki v. Contra Costa City Employees’ Ret. Ass’n* (June 27, 2017) 2017 U.S. Dist. LEXIS 99485.)

On July 10, 2017, Mr. Nowicki filed a new Petition and Complaint with this Court, which restated his original petition for writ of administrative mandamus. The July 10, 2017 petition included a cause of action against CCCERA for administrative mandate pursuant to Code of Civil Procedure section 1094.5 as well as causes of action alleging due process and equal protection violations under the California Constitution, breach of contract, breach of the duty of good faith and fair dealing, promissory estoppel, and declaratory relief. Mr. Nowicki filed an amended complaint on the same day as the original complaint because the original filing omitted the verification.

On November 3, 2017, this Court overruled CCCERA’S demurrer as to Mr. Nowicki’s administrative mandate cause of action in the first amended complaint, sustained the demurrer with leave to amend as to the fourth cause of action for denial of equal protection under the California Constitution, and sustained the demurrer without leave to amend as to the remaining causes of action, including the due process claim under the California Constitution.

On November 15, 2017, Mr. Nowicki filed a second amended petition for writ of administrative mandate and complaint, which included causes of action for administrative mandate pursuant to Code of Civil Procedure section 1094.5 and for denial of equal protection under the California Constitution.

On February 13, 2018, this Court sustained CCCERA’S demurrer to the second amended complaint without leave to amend as to the equal protection cause of action and with leave to amend the administrative mandate claim to “seek review pursuant to ordinary mandamus” under Code of Civil Procedure section 1085. The trial court also sustained without leave to amend the Fire District’s demurrer to the second amended complaint. In an August 27, 2019 opinion, the Court of Appeal affirmed this order. (*Nowicki v. Moraga-Orinda Fire District* (Aug. 18, 2019, A153833) [nonpub. opn.])

After Mr. Nowicki filed a third amended petition for writ of administrative mandate, the remaining parties met and conferred regarding objections to the petition raised by CCCERA, and submitted a stipulation to the court on March 12, 2018, under which CCCERA would not object to the filing of a fourth amended complaint for writ of ordinary mandate pursuant to Code of Civil Procedure section 1085.

On March 20, 2018, Mr. Nowicki filed his fourth amended writ petition against CCCERA, which included a single cause of action for writ of mandate under Code of Civil Procedure section 1085, alleging that the Board had abused its discretion when it found that he had violated Government Code section 31539.

In a February 19, 2020 order, following briefing and argument, this Court denied Nowicki’s petition, finding that he had not met his burden of establishing that the Board’s decision to decrease his monthly allowance was an abuse of discretion or that the administrative proceedings before the Board had violated his due process rights.

The court entered judgment in favor of CCCERA on April 15, 2020. On June 11, 2020, Nowicki filed a notice of appeal. On August 10, 2021 the Court of Appeal, in a published decision, concluded that the CCCERA Board’s determination that Nowicki caused his pension to be improperly increased at the time of retirement was an abuse of discretion. The Court of Appeal reversed judgment for CCCERA in a published decision dated August 10, 2021. (*Nowicki v. Contra Costa County Employees’ Retirement Assn.* (2021) 67 Cal.App.5th 736.)

Subsequently on June 6, 2022, CCCERA issued a check for \$265,835.24 to JP Morgan Securities and a check for \$217,501.56 to Pershing LLC. (Dunn Decl. at ¶ 12, Ex. D.) These payments were “for [CCCERA’s] portion of past underpayments owed to [Mr. Nowicki] from its trust fund, which included interest at the 7% prejudgment interest rate.” (*Id.* at ¶ 12.) On May 29, 2023, CCCERA paid further interest on Petitioner’s June 6, 2022 payment due to a delay in the posting of the deposited check. (Dunn Decl. at ¶ 13.)

Because of the operation of the IRS 415 Limit, Petitioner also receives retirement benefits from the Fire District. The total principal amount attributable to the Replacement Benefit Plan for restored benefits was \$805,810.75 for two time periods, 2009 to 2015 and 2015 to 2022. (See Compendium of Evidence, Ex. 22.) CCCERA made a repayment for the first time period, with 7% interest, because it had possession of the funds at the time of payment. (Dunn Decl. at ¶¶ 16, 20-21.) That payment left \$514,790.61 payable from the Replacement Benefit Plan for period of 2015 to 2022. The Fire District paid Petitioner the principal amount, but not the associated interest. (Dunn Decl. at ¶ 19, Ex. F.) Petitioner filed a Government Claim pursuant to Government Code section 910 *et seq.* against the

Fire District for damages related to the unpaid interest. (Chin Decl. at ¶ 10, Ex. F.)

The Court understands that Petitioner has not pursued a separate lawsuit against the Fire District for the interest; instead, he asks that this Court order CCCERA pay that amount as part of the instant writ proceedings.

Legal Standard

Code of Civil Procedure § 1085(a) provides: “A writ of mandate may be issued by any court to any ... board ... to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station[.]” Mandamus under section 1085 is used to compel a ministerial duty or to correct an abuse of discretion. (*American Board of Cosmetic Surgery v. Medical Board of California* (2008) 162 Cal.App.4th 534, 547.) Additionally, a writ of mandamus will not issue unless the respondent has the present ability or legal authority to perform the alleged duty. (*Romo v. Department of Motor Vehicles* (1991) 229 Cal.App.3d 251, 254.)

The grant of a writ may include a return as a technique for ensuring compliance and closure. The purpose of a return is to ensure that respondent took the actions required by the writ. (*L.A. International Charter High Sch. v. L.A. Unified Sch. Dist.* (2012) 209 Cal.App.4th 1348, 1355.)

A writ will not lie if the named respondent has no duty to perform the act. (See, e.g., *Connolly v. County of Orange* (1992) 1 Cal.4th 1105, 1113 [a county may not be compelled to grant a property tax exemption in the first instance as that duty (when it exists) belongs to the county assessor]; see also *Wenzler v. Municipal Court for Pasadena Judicial Dist.* (1965) 235 Cal.App.2d 128, 132 [“Where it appears that the officer named as respondent is not the one whose duty is involved, relief is denied.”].)

Analysis

Mr. Nowicki asks that the Court determine the appropriate prejudgment interest rate is 10% and that, in its discretion, it determine that CCCERA is responsible for compensating him for all underpayments to him, including those made by the Fire District. In opposition, CCCERA maintains that 7% is the appropriate interest rate as they argue there is no contractual relationship between Mr. Nowicki and CCCERA and Mr. Nowicki did not assert a breach of contract claim. Additionally, CCCERA argues that would be legally impermissible to compel it to pay Mr. Nowicki money owed to him by the Fire District.

“[T]he California Constitution provides for prejudgment interest at 7 percent per annum. (Cal. Const., art. XV, § 1.) However, Civil Code section 3289 provides that the legal rate of interest chargeable after breach of a contract which does not stipulate an interest rate is 10 percent per annum.” (*Pro Value Properties, Inc. v. Quality Loan Service Corp.* (2009) 170 Cal.App.4th 579, 582-583; *accord, Children’s Hospital & Medical Center v. Bontá* (2002) 97 Cal.App.4th 740, 774-775.) Specifically, Civil Code section 3289 provides “(a) Any legal rate of interest stipulated by a contract remains chargeable after a breach thereof, as before, until the contract is superseded by a verdict or other new obligation. [¶] (b) If a contract entered into after January 1, 1986, does not stipulate a legal rate of interest, the obligation shall bear interest at a rate of 10 percent per annum *after a breach*. [¶] For the purposes of

this subdivision, the term contract shall not include a note secured by a deed of trust on real property.” (Italics added.) The plain language of the statute makes no mention of awarding 10 percent interest whenever a remedy resembles contract damages. Instead, it is clear that the 10 percent interest rate applies only after a *breach* of contract. This is not a breach of contract case.

Mr. Nowicki’s fourth amended petition for writ of mandamus pleads a single cause of action under Code of Civil Procedure section 1085 for abuse of discretion. Specifically, Mr. Nowicki alleges that “[t]he CCCERA Board reduced Nowicki’s pension benefits purportedly pursuant to its authority under Government Code section 31539” and that “the Board abused its discretion by finding that Nowicki had violated section 31539.” (4th Amended Petition at ¶ 18.) While the “prejudicial abuse of discretion” Nowicki alleges in his Fourth Amended Complaint is calculated in terms of monetary loss (see *id.* at ¶ 14), it is not characterized as a breach of contract.

Nevertheless, Petitioner argues that “this is a contract case to which the 10% interest rate applies.” (Opening Brief at 14:1.) He argues that “the pension provisions become a part of the contemplated compensation for those services and so in a sense a part of the contract of employment itself.” (*id.* at 14:5-7 [quoting *Alameda Cnty. Deputy Sherriff’s Ass’n v. Alameda Cnty. Employees’ Ret. Ass’n* (2020) 9 Cal.5th 1032, 1053].)

Petitioner provides this quote out of context. In *Alameda*, the plaintiffs (labor unions and other labor groups) challenged the amendments to CERL (i.e., the PEPRAs exclusions under § 31461, subd. (b)) on the ground that the plaintiffs possessed (1) contractual or equitable rights to receive pension benefits and (2) a constitutional right to receive pension benefits according to the law as it existed prior to PEPRAs. (*Alameda*, *supra*, 9 Cal.5th at pp. 1052-53.) The court upheld the PEPRAs exclusions, concluding they did not violate contractual, equitable, or constitutional rights. (*id.* at p. 1054.) *Alameda* does not support a conclusion that Nowicki’s pension benefits are contractual rather than statutorily proscribed. Rather, *Alameda* states that “it is the Legislature that has final authority to establish the provisions governing the award of pension benefits under CERL.” (*id.* at p. 1067; see also *id.* at pp. 1066-67 [“The task of a county retirement board is not to design the county’s pension plan but to implement the design enacted by the Legislature through CERL.”].)

Additional authority cited by Petitioner does not compel a different result. In fact, *Teachers’ Ret. Board v. Genest* supports a conclusion that Petitioner’s writ must be based on a breach of contract claim for the higher interest rate to apply. (*Teachers’ Ret. Board v. Genest* (2007) 154 Cal.App.4th 1044.) In *Genest*, the Teachers’ Retirement Board filed a petition for writ of mandate and complaint for injunctive and declaratory relief against the state, asserting that the state had violated its contractual obligation to make contributions to a pension benefits fund. The superior court entered judgment in the plaintiff’s favor and awarded prejudgment and postjudgment interest at the rate of 7 percent per annum. (154 Cal.App.4th at pp. 1024-1026.) On review, the Third District agreed that the state had breached an express contractual obligation. (*id.* at pp. 1030-32, 1036, 1045.) The court also decided that the plaintiff was entitled to prejudgment interest at the rate of 10 percent per annum because “Civil Code section 3289 specifies that the applicable interest rate for prejudgment interest *in breach of contract cases* is 10 percent. This rate, set by the Legislature, from which public entities are not excepted, replaces the default rate in the California Constitution for instances in which the Legislature has not acted to set another rate. Having made state and public entities liable for

prejudgment interest *on all contract claims*, whether liquidated or unliquidated, the interest rate set forth for such claims in Civil Code section 3289 necessarily applies to these entities absent an express legislative exemption.” (*Genest*, at p. 1045, italics added.)

Petitioner’s reliance on *Brown v. California Unemployment Insurance Appeals Board* is also misplaced. (*Brown v. California Unemployment Insurance Appeals Board* (2018) 20 Cal.App.5th 1107.) The *Brown* court considered the correct rate of interest to be applied after a determination that unemployment benefits were wrongfully withheld by the Employment Development Department and the California Unemployment Insurance Appeals Board. *Brown* argued that interest should be charged at the contract rate of 10 percent from the date that each benefit payment was due, in accordance with Civil Code section 3289, subdivision (b). In contrast, EDD asserted that the trial court correctly determined that any such interest should be calculated at the rate of 7 percent, as authorized by article XV, section 1, of the California Constitution and Government Code section 965.5, subdivisions (a) and (d). The Court of Appeal concluded that the trial court applied the incorrect interest rate to the wrongfully withheld benefits at issue and reversed for recalculation of interest.

Brown was decided in the unemployment insurance context. Specifically, the Court of Appeal considered the issue of whether section 3289, subdivision (b)—which sets a prejudgment interest rate of 10 percent for contracts which fail to “stipulate a legal rate of interest”—is applicable in the unemployment insurance context and supplies a statutory exception to the default rate of 7 percent. The *Brown* court concluded that “a former employee’s right to unemployment benefits is sufficiently tied to his or her employment contract to justify imposition of prejudgment interest at the contractual rate of 10 percent.” (*Brown, supra*, 20 Cal.App.5th at p. 1116.) In reaching this conclusion, the Court of Appeal reasoned that “an employee earns the right to participate in the unemployment insurance system through his or her labor, receiving in return what is essentially a deferred employee benefit. Under such circumstances, it can be argued that, when an employee performs services for his or her employer, the unemployment insurance provisions ‘become a part of the contemplated compensation for those services and so in a sense a part of the contract of employment itself.’” (*Id.* at p. 1117 [quoting *Kern v. City of Long Beach* (1947) 29 Cal.2d 848, 852].) The *Brown* court’s conclusion was narrow: that, under the circumstances of that case, “EDD’s statutory obligations under the Act are in the nature of a contractually enforceable promise which should be subject to the statutory contractual rate of prejudgment interest when breached.” (*Id.* at p. 1119.)

Bell v. Farmers Ins. Exchange is similarly distinguishable. (*Bell v. Farmers Ins. Exchange* (2006) 135 Cal.App.4th 1138.) The *Bell* court held that prejudgment interest at the rate of 10 percent accrues on unpaid overtime compensation recovered under Labor Code section 1194. In *Bell*, the plaintiff employees filed a class action alleging their employer had refused to pay overtime compensation for hours worked. (*Id.* at pp. 1141, 1150.) The question was whether Labor Code section 218.6, which as of January 1, 2001, incorporated the interest rate provided by Civil Code section 3289 for breach of contract actions, applied only prospectively or whether it simply clarified existing law. (*Bell*, at p. 1142.)

After concluding that the defendant had waived its objection to the 10 percent interest rate by expressly agreeing to it, the *Bell* court went on to address the plaintiffs’ contention that, “[b]efore [Labor Code] section 218.6 expressly required the use of the breach-of-contract rate for prejudgment

interest, this rate was still the appropriate rate for unpaid wage claims because of the contractual nature of the employment relationship.” (*Bell, supra*, 135 Cal.App.4th at pp. 1142, 1145-1146.) *Bell* is distinguishable from the instant case in that the statutory scheme at issue expressly required the imposition of the interest rate under § 3289.

That said, Respondent’s reliance on *Flethez v. San Bernardino County Employees’ Retirement Association* is not dispositive. (*Flethez v. San Bernardino County Employees’ Retirement Association* (2017) 2 Cal.5th 630.) *Flethez* was decided in the disability retirement context. The trial court determined that a county retirement board wrongfully denied the employee the correct starting date for his disability retirement allowance. Ultimately the California Supreme Court held that the employee’s retirement benefits under the County Employees Retirement Law of 1937 (Gov. Code § 31450 *et seq.*) were not due before the board received his application and made a determination of his eligibility. As a consequence, his entitlement to prejudgment interest under Civil Code § 3287 commenced on the date of wrongful denial. However, the *Flethez* court did not consider the issue of whether the higher prejudgment interest rate for contracts might apply. Opinions are not authority for propositions not considered. (*People v. Avila* (2006) 38 Cal.4th 491, 566.) Consequently, it is not decisive of the issue now before the Court.

With the above authority in mind, the Court concludes that 7% under Civil Code section 3287 is the proper prejudgment interest rate on the proposed writ. Mr. Nowicki’s petition, for abuse of discretion under Code of Civil Procedure section 1085, is not a breach of contract claim that would entitle him to application of the higher rate of prejudgment interest under Civil Code section 3289.

Finally, the Court considers Petitioner’s request that the Court hold CCCERA responsible for the interest payment on the principal amount of \$514,790.61 paid by the Fire District. Petitioner argues (without authority) that “the Court may, in its role as finder of fact under CCP section 1095, determine that CCCERA is responsible for compensating Mr. Nowicki for all underpayments caused by its erroneous decision because CCCERA acted intentionally.” (Opening Brief at 15:23-25.) In opposition, CCCERA argues that Code of Civil Procedure section 1085 limits the scope of the writ to extend only as far as CCCERA, the named Respondent. (Opp. at 12:23-24.)

As a threshold issue, as the Court noted in its prior order denying Petitioner leave to amend, the Court of Appeal’s reversal of this Court’s judgment denying Nowicki’s petition for writ of mandate was not intended as a remand for a new trial on the merits. (See, e.g., *Moore v. City of Orange* (1984) 153 Cal.App.3d 998 [an unqualified reversal not intended as a remand for a new trial on the merits].) Consequently, the Court lacks jurisdiction to make any new factual findings.

Additionally, it is well established that a writ will not lie if the named respondent has no duty to perform the act. (See *Connolly, supra*, 1 Cal.4th at p. 1113; see also *Wenzler, supra*, 235 Cal.App.2d at p. 132.) Here, the instant writ is limited to CCCERA; the Fire District is no longer part of this proceeding. Petitioner is not without remedy—he can pursue a legal remedy against the Fire District. He cannot, however, compel CCCERA to pay interest on the amount the Fire District remitted to him. (See Code Civ. Proc. § 1086; see *Wenzler, supra*, 235 Cal.App.2d at pp. 133–34 [mandamus relief not available to compel county to refund fine paid for violation of unconstitutional ordinance because the plaintiff made no showing that civil action for refund was inadequate].)

Evidentiary Objections

The Court rules on Respondent's Objections to the Declaration of Peter J. Nowicki as follows:

Objection No. 1. Sustained.

Objection No. 2. Sustained.

Objection No. 3. Sustained.

Objection No. 4. Sustained.

Objection No. 5. Sustained.

Objection No. 6. Sustained.

Objection No. 7. Sustained.

Objection No. 8. Sustained.

Objection No. 9. Sustained.

Objection No. 10. Sustained.

19. 9:00 AM CASE NUMBER: N24-1516

CASE NAME: DANIEL FISHER VS. DENNIS CALANO

***HEARING ON MOTION IN RE: ORDER TO SHOW CAUSE RE: CONTEMPT AGAINST RESPONDENT
DENNIS CALANO**

FILED BY: FISHER, DANIEL

TENTATIVE RULING:

Parties to Appear.

Courtroom Clerk's session

20. 10:00 AM CASE NUMBER: C22-01835

CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA

JURY TRIAL 15 DAYS

FILED BY:

TENTATIVE RULING:

Parties to Appear.

21. 1:30 PM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

*HEARING ON MOTION IN RE:

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Yongchan Park and Plaintiff Jihoon You (collectively, “Plaintiffs”)’s motion for summary adjudication (the “MSA”). Plaintiffs seek adjudication on two issues: (1) that Defendant Minhe, Inc. owed them certain duties under the IWC Wage Order 7 and the California Labor Code, and (2) that Defendants’ affirmative defense of family relationship fails as a matter of law.

First, the Court addresses the state of the papers. Plaintiffs filed their motion on October 2, 2025 with a hearing date of December 22, 2025. The hearing was later continued to January 12, 2026. In opposition, Defendants Michael Yang and Minhe, Inc. filed a Declaration of Richard D. Schramm as well as what purported to be memorandum of points and authorities in opposition (but was instead an opposition to Plaintiffs’ motion to compel further response to special interrogatories) on December 5, 2025. The Court ordered the parties to appear at the January 12, 2026 hearing to discuss the briefing on the motion and a schedule for the trial.

At that hearing, the Court directed the parties to submit binders of their filed papers. The Court also directed Defendants to file the opposition papers if not previously filed. The Court also continued the hearing on the motion to January 26, 2026. In response, on January 16, 2026 Defendants filed revised documents and new evidence in opposition rather than their as-served opposition documents.

The Court declines to consider these unauthorized new submissions. [See Rule 3.1300(d), California Rules of Court (CRC).] The Court’s order on January 12, 2026 contemplated that Defendants would file with the Court their as-served opposition papers. The Court did not authorize Defendants to submit new opposition documents and evidence. Accordingly, the pending motion is effectively unopposed.

For the following reasons, the MSA is **GRANTED**.

Brief Factual and Procedural Background

The instant case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code § 98.2(a) by Defendants. Plaintiffs’ claims under the California Labor Code and the IWC Wage Orders arise out of their work at Rose and Mike’s Liquor between December 14, 2016 and October 28, 2018.

Rose and Mike’s Liquor is a business located at 12622 San Pablo Ave., Richmond, CA 94805. (UMF 1.1.) Rose and Mike’s Liquor is a retail establishment that sells wine, beer, spirits, groceries, and some apparel. (UMF 1.2.) Michael Yang has been the sole owner, officer, and director of Minhe, Inc. since Minhe, Inc. was created in 2014. (UMF 1.3.) Minhe, Inc. has owned and operated Rose and Mike’s Liquor continuously since 2014. (UMF 1.4.) Minhe, Inc. owned and operated Rose and Mike’s Liquor between December 1, 2016 and October 28, 2018. (UMF 1.5.)

Between December 14, 2016 and October 28, 2018, Plaintiff Yongchan Park performed labor in and around Rose and Mike’s Liquor. (UMF 1.6.) Between December 14, 2016 and October 28, 2018,

Plaintiff Jihoon You performed labor in and around Rose and Mike's Liquor. (UMF 1.7.) Between December 14, 2016 and October 28, 2018, Jihoon You and Yongchan Park moved boxes and helped clean at Rose and Mike's Liquor. (UMF 1.8.) Between December 14, 2016 and October 28, 2018, Jihoon You and Yongchan Park performed activities that Defendants characterize as "gratuitous family labor" in and around Rose and Mike's Liquor. (UMF 1.9.)

On or around October 28, 2018, Plaintiffs "were ordered not to return" to Rose and Mike's Liquor. (UMFs 1.21–1.22.) Thereafter they ceased to perform work in the store. Plaintiff You received some limited payments for his work in 2018 but otherwise was not paid any wages. (UMF 2.3.)

In 2019, Plaintiffs filed wage claims with the Division of Labor Standards Enforcement. The DLSE issued decisions on Plaintiffs' claims in January 2025. Defendants then filed an appeal with this Court pursuant to Labor Code § 98.2(a).

Legal Standard

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.) A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c(p)(1).)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.)

A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment. (Code Civ. Proc. § 437c(f)(1)-(2).)

Analysis

Plaintiffs first seek summary adjudication on the issue of whether Minhe, Inc. was their employer and thus owed them duties imposed on employers by IWC Wage Order 7.

"[I]n Labor Code wage and hour violation cases, the wage order definition of the employment relationship and the *Martinez* test control." (*Taylor v. Financial Casualty & Surety, Inc.* (2021) 67 Cal. App. 5th 966, 996 [citation omitted].) Under *Martinez*, the term "employment" in state wage and hour cases means: "(a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship." (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) Where more than one entity falls within the definition of an "employer" under the applicable Wage Order with respect to the person performing work, the entities may be joint employers of the person.

"'Control over wages' means that a person or entity has the power or authority to negotiate and set an employee's rate of pay, and not that a person or entity is physically involved in the preparation of an employee's paycheck." (*Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1188 [quoting *Furell*

v. Payday Calif. Inc. (2010) 190 Cal.App.4th 1419, 1429.) To suffer or permit to work entails the power “to either cause to work or prevent from working.” (*Futrell, supra*, 190 Cal.App.4th at p. 1435.)

The undisputed evidence supports the conclusion that Minhe, Inc. meets both the tests of “suffer or permit to work” and “exercise control over wages” under *Martinez*. It is undisputed that Plaintiffs performed labor for Rose and Mike’s Liquor between December 14, 2016 and October 28, 2018. (UMFs 1.6–1.7.) Defendants were aware of Plaintiffs’ work. (UMFs 1.10–1.11.) Minhe, Inc.—through its sole officer, director, and shareholder, Michael Yang—had the power to prevent Plaintiffs’ work from occurring. (UMF 1.17.) Between 2016 and 2018, Defendant Yang was solely responsible for hiring and firing employees at Rose and Mike’s Liquor. (UMF 1.18.) At all relevant times, Minhe, Inc. has owned the property where Rose and Mike’s Liquor is located, and it has the power to prevent unwanted persons from entering or remaining in the business. (UMFs 1.19–1.20.) The foregoing undisputed facts establish “the defendant’s knowledge of and failure to prevent the work from occurring.” (*Martinez, supra*, 49 Cal.4th at p. 70.)

Defendants’ control over Plaintiffs wages is also undisputed. As early as 2018, Defendant Minhe, Inc.’s policy was that Plaintiffs could not be “employees” entitled to compensation. (UMF 2.1.) Additionally, Defendant Yang, on behalf of Defendant Minhe, Inc., would “count the hours” of Minhe, Inc.’s workers for purposes of Minhe, Inc.’s payroll. (UMF 2.2.) Finally, in 2018, Minhe, Inc. began issuing sporadic paychecks and check stubs to Plaintiff You. (UMF 2.3.)

Plaintiffs have met their burden of proof to show that Minhe, Inc. caused them to work and controlled their wages, and are therefore considered an employer under *Martinez*. As a consequence, Minhe, Inc. had a duty to comply with their obligations under the Wage Orders of the Industrial Welfare Commission. (See *Martinez, supra*, 49 Cal.4th at pp. 65-66.)

Affirmative Defense: Immediate Family Exemption

Next, Plaintiffs move for summary adjudication of Defendants’ affirmative defense that they are exempt from the obligations imposed by Wage Order 7 and the California Labor Code because of their familial relationship with Plaintiffs.

IWC Wage Order 7 contains only one exemption for immediate family relationships. It states that the “provisions of this order shall not apply to any individual who is the parent, spouse, child, or legally adopted child of the employer.” (IWC Wage Order 7, § 1(D); Cal. Code Regs. tit. 8, § 11070, subd. 1(D).)

As a threshold issue, the Court agrees with Plaintiffs that the immediate family exemption does not apply to the corporate entity Minhe, Inc. as it is not an “individual” within the meaning of the statute.

The Court also concludes that the nature of Defendant Michael Yang’s relationships with Plaintiffs does not support application of the exemption. At all times relevant to this case, Jihoon You was Michael Yang’s stepson. (UMFs 4.1–4.2.) Jihoon You was already an adult when his mother married Michael Yang in 2014, and Michael Yang never legally adopted him. (UMFs 4.2–4.3.) Yongchan Park is Michael Yang’s first cousin once removed. (UMFs 4.4–4.5.)

Yongchan Park is clearly outside of the statutory definition “parent, spouse, child, or legally adopted child of the employer.” With respect to Jihoon You, although he was Defendant Michael Yang’s stepson, he was never legally adopted so he, too, falls outside the statutory definition (as he is

neither Yang’s “child” nor “legally adopted child”). The plain language of the exemption does not reflect any ambiguity as to whether “child” encompasses an unadopted stepson. The separate enumeration of “child” and “legally adopted child” in the exemption leads to the plain reading that “child” is meant as “biological child.”

Plaintiffs have met their burden to show that they are not included in the limited class of familial relationships excluded from Wage Order 7.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

Disposition

The Court finds and orders as follows:

1. The MSA is GRANTED.
2. Moving party to prepare the order after hearing.